



CHAPTER 56.

An Act to consolidate with amendments certain enactments relating to food, drugs, markets, slaughter-houses and knackers' yards.

A.D. 1938.

[29th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

GENERAL PROVISIONS AS TO FOOD AND DRUGS.

Composition of food and drugs.

1.—(1) No person shall add, or direct or permit any other person to add—

Restrictions on the addition of other substances to any food or drug.

(a) any substance to any food so as to render the food injurious to health; or

(b) any substance to any drug so as to affect injuriously the quality or potency of the drug,

with the intent that the food or drug may be sold in that state.

(2) No person shall sell, or have in his possession for the purpose of sale, any food or drug to which any substance has been so added.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

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Restrictions
on the
abstraction
from any
food of any
constituent
thereof.

2.—(1) No person shall abstract, or direct or permit any other person to abstract, from any food any constituent thereof so as to affect injuriously the nature, substance or quality of the food with intent that it may be sold in its altered state—

- (a) without notice to the purchaser of the alteration;
or
- (b) whether with or without such notice, if in that state the food does not comply with any relevant provisions contained in regulations made under this Act for prescribing the composition of food.

(2) A person who contravenes any of the provisions of this section shall be guilty of an offence.

Prohibition
against sale
of any food
or drug
not of
the nature,
substance or
quality
demanded.

3.—(1) If a person sells to the prejudice of the purchaser any food or drug which is not of the nature, or not of the substance, or not of the quality, of the food or drug demanded by the purchaser, he shall, subject to the provisions of the next succeeding section, be guilty of an offence.

(2) Where regulations made under this Act contain provisions prescribing the composition of, or prohibiting or restricting the addition of any substance to, any food, a purchaser of that food shall, unless the contrary is proved, be deemed for the purposes of this section to have demanded food complying with the provisions of the regulations.

(3) In proceedings under this section it shall not be a defence to allege that the purchaser bought for analysis or examination and therefore was not prejudiced.

Defences
available
in proceed-
ings under
section
three.

4. In proceedings under the last preceding section it shall be a defence for the defendant to prove—

- (1) where some substance has been added to the food or drug in question—
 - (a) in the case of a food, that the substance is not, and its addition has not rendered the food, injurious to health; or, in the case of a drug, that the addition has not affected injuriously the quality or potency of the drug; and

(b) that the addition was not made fraudulently to increase the bulk, weight or measure, or conceal the inferior quality, of the food or drug; and

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PART I.
—*cont.*

(c) either—

(i) that the addition was required for the production or preparation of the food or drug as an article of commerce in a state fit for carriage or consumption; or

(ii) that a label satisfying the requirements of the next succeeding section was attached to, or printed on the wrapper or container of, the article sold;

(2) where some constituent has been abstracted from the food or drug in question—

(a) that the abstraction has not rendered the food injurious to health, or, as the case may be, affected injuriously the quality or potency of the drug, and was not made fraudulently to conceal the inferior quality of the food or drug; and

(b) either—

(i) that the abstraction was required for the production or preparation of the food or drug as an article of commerce in a state fit for carriage or consumption; or

(ii) that a label satisfying the requirements of the next succeeding section was attached to, or printed on the wrapper or container of, the article sold;

(3) where the food or drug in question is the subject of a patent in force, that it was supplied in the state required by the specification of the patent;

(4) where the food or drug in question contains some extraneous matter, that the presence of that matter was an unavoidable consequence of the process of collection or preparation;

(5) that the article supplied was a proprietary medicine and was supplied in response to a demand for that medicine;

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- (6) where the proceedings are in respect of diluted whisky, brandy, rum or gin, that the spirit in question had been diluted with water only and that its strength was still not lower than thirty-five degrees under proof :

Provided that—

- (a) none of the defences specified in paragraphs (1) to (4) of this section shall be available in the case of any food which does not comply with any relevant provisions contained in regulations made under this Act for prescribing the composition of, or prohibiting or restricting the addition of any substance to, food; and
- (b) nothing in paragraph (6) of this section affects the provisions of section fourteen of the Finance Act, 1935, with respect to the dilution of spirits after computation of duty.

25 & 26
Geo. 5. c. 24.Provisions
as to labels.

5.—(1) A label shall afford no defence under sub-paragraph (c) (ii) of paragraph (1) or sub-paragraph (b) (ii) of paragraph (2) of the last preceding section unless the following requirements are satisfied :—

- (a) the label must state explicitly what substance has been added to, or what constituent has been abstracted from, the food or drug; and
- (b) it must be of adequate size, and have the notice of addition or abstraction distinctly and legibly printed and conspicuously visible.

(2) Notwithstanding anything in the preceding subsection, the requirements thereof shall, as respects a mixture, be deemed to be satisfied by a label which has been continuously in use without any material variation since the first day of January eighteen hundred and ninety-three and bears a statement to the effect that the article in question is mixed, or by a label which has been continuously in use without any material variation since the first day of October nineteen hundred and thirty-two and bears such a statement distinctly and legibly printed and unobscured by other matter on the label.

Labels and
advertisements de-

6.—(1) A person who gives with any food or drug sold by him a label, whether attached to or printed on the wrapper or container or not, which falsely describes

that food or drug, or is otherwise calculated to mislead as to its nature, substance or quality, shall be guilty of an offence, unless he proves that he did not know, and could not with reasonable diligence have ascertained, that the label was of such a character as aforesaid.

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PART I.
—cont.
scribing in-
correctly
food or
drugs.

(2) A person who publishes, or is a party to the publication of, an advertisement (not being such a label so given by him as aforesaid) which falsely describes any food or drug, or is otherwise calculated to mislead as to its nature, substance or quality, shall be guilty of an offence :

Provided that in proceedings under this subsection it shall be a defence for the defendant to prove either—

- (a) that he did not know, and could not with reasonable diligence have ascertained, that the advertisement was of such a character as aforesaid; or
- (b) that, being a person whose business it is to publish, or arrange for the publication of, advertisements, he received the advertisement for publication in the ordinary course of business.

In any such proceedings as aforesaid against the manufacturer, producer or importer of the food or drug, it shall rest on the defendant to prove that he did not publish, and was not a party to the publication of, the advertisement.

7. Where regulations made under this Act contain provisions prohibiting or restricting the addition of any substance to any food, the addition of that substance—

Presump-
tive evi-
dence as to
injurious
nature of
food.

- (a) if made in contravention of any of the regulations which is expressed to be made for the prevention of danger to health, shall; and
- (b) if made to an amount not exceeding the limit, if any, specified by any of the regulations, shall not,

for the purposes of this Part of this Act be deemed to render the food injurious to health.

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Regulations as to food.

PART I.
—cont.
Power of
Minister
of Health
to make
regulations
as to the
importation,
preparation,
storage, sale,
delivery,
&c. of food.

8.—(1) The Minister of Health (hereafter in this Act referred to as “the Minister”) may, subject to the provisions of this section, make regulations (in this Act referred to as “Food Regulations”) for all or any of the purposes mentioned in any of the following paragraphs, that is to say:—

- (a) authorising measures to be taken for the prevention of danger to health from the importation, preparation, transport, storage, exposure for sale, and delivery of food of various kinds intended for sale or sold for human consumption;
- (b) requiring wrappers or containers enclosing or containing food of various kinds to be labelled or marked in accordance with the regulations;
- (c) prohibiting or restricting the addition of any substance to, and regulating generally the composition of, any food.

(2) Regulations shall not be made under this section with respect to bread or flour.

(3) Regulations for any of the purposes mentioned in paragraph (b) or paragraph (c) of subsection (1) of this section may be made with respect to cream, but, save as aforesaid, regulations shall not be made under this section with respect to milk.

(4) Regulations shall not be made for any of the purposes mentioned in the said paragraph (c) unless they are expressed to be in the opinion of the Minister necessary or expedient for preventing danger to health or loss of nutritional value, or otherwise for protecting purchasers.

Unsound food.

Penalty for
sale, &c. of
unsound
food.

9.—(1) A person who—

- (a) sells, or offers or exposes for sale, or has in his possession for the purpose of sale or of preparation for sale; or
- (b) deposits with, or consigns to, any person for the purpose of sale or of preparation for sale,

any food intended for, but unfit for, human consumption shall, subject to the provisions of this section, be guilty of an offence.

(2) Where food in respect of which an offence under paragraph (a) of the preceding subsection has been committed was sold to the offender by some other person, that person also shall, subject to the provisions of this section, be guilty of an offence.

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—cont.

(3) Where a person is charged with an offence under paragraph (b) of subsection (1) of this section or under the last preceding subsection, it shall be a defence for him to prove either that he gave notice to the person with whom he deposited, or to whom he consigned or sold, the food in question that it was not intended for human consumption, or that, at the time when he delivered or dispatched it to that person, either it was fit for human consumption or he did not know, and could not with reasonable diligence have ascertained, that it was unfit for human consumption.

(4) A person guilty of an offence under this section shall be liable to a fine not exceeding fifty pounds, or to imprisonment for a term not exceeding three months, or to both such a fine and such imprisonment.

(5) If a person licensed under this Act, or the Public Health (London) Act, 1936, to keep a slaughter-house is convicted of an offence under this section, the court may, in addition to any other penalty, cancel his licence.

26 Geo. 5. &
1 Edw. 8.
c. 50.

(6) The justice of the peace before whom any food is brought under the next succeeding section may, but need not, be a member of the court before which a person is charged with an offence under this section in relation to that food.

10.—(1) An authorised officer of a local authority may at all reasonable times examine any food intended for human consumption which has been sold, or is offered or exposed for sale, or is in the possession of, or has been deposited with or consigned to, any person for the purpose of sale or of preparation for sale, and, if it appears to him to be unfit for human consumption, may seize it and remove it in order to have it dealt with by a justice of the peace.

Examina-
tion of food
and seizure
of unsound
food.

(2) An officer who seizes any food under the preceding subsection shall inform the person in whose possession it was found of his intention to have it dealt with by a justice of the peace, and any person who under the last

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preceding section might be liable to a prosecution in respect of the food shall, if he attends before the justice upon the application for its condemnation, be entitled to be heard and to call witnesses.

(3) If it appears to a justice of the peace that any food brought before him, whether seized under the provisions of this section or not, is unfit for human consumption, he shall condemn it and order it to be destroyed, or to be so disposed of as to prevent it from being used for human consumption.

(4) If a justice of the peace refuses to condemn any food seized under this Part of this Act by an authorised officer of a local authority, the authority shall compensate the owner of the food for any depreciation in its value resulting from its seizure and removal.

Provisions
as to food
offered as
prizes, &c.

11.—(1) The foregoing provisions relating to unsound food shall apply in relation to any food which is intended for human consumption and is—

- (a) offered as a prize or reward in connection with any entertainment to which the public are admitted, whether on payment of money or not; or
- (b) offered as a prize or reward or given away for the purpose of advertisement, or in furtherance of any trade or business; or
- (c) exposed or deposited in any premises for the purpose of being so offered or given away as aforesaid,

as if that food were, or had been, exposed for sale—

- (i) in a case falling within paragraph (a), by each person concerned in the organisation of the entertainment;
- (ii) in a case falling within paragraph (b), by the person offering or giving away the food;
- (iii) in a case falling within paragraph (c), by the occupier of the premises in question.

(2) In this section the expression “entertainment” includes any social gathering, amusement, exhibition, performance, game, sport or trial of skill.

12. If an authorised officer of a local authority has reason to suspect that any cart, barrow or other vehicle, or any container contains any food intended for sale for human consumption, or in the course of delivery after sale for human consumption, he may examine the contents of the vehicle, or, as the case may be, of the container, and for that purpose may, if necessary, detain the vehicle or the container, and, if he finds any food which appears to him to be intended for, but unfit for, human consumption, he may deal with it as food falling within subsection (1) of section ten of this Act and subsections (2) to (4) of that section shall apply accordingly:

Provided that—

(a) nothing in this section shall authorise the examination of the contents of—

(i) any vehicle belonging to a railway company and used by them for the purposes of their undertaking; or

(ii) any authorised vehicle used for the purpose of his business as a carrier of goods by a person holding an A licence or a B licence under Part I of the Road and Rail Traffic Act, 1933; or

(iii) any container in the possession of a railway company or of any such person as aforesaid as carriers or carrier thereof; and

(b) where the duties of an officer of customs and excise with respect to any goods have not been wholly discharged, nothing in this section shall authorise the examination of those goods without his consent.

Precautions against contamination of food.

13.—(1) Subject to the provisions of this section, the following provisions shall have effect in relation to every room in which any food intended for human consumption, other than milk, is prepared for sale or sold, or offered or exposed for sale, or deposited for

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—cont.

Power to examine food in course of transit.

23 & 24
Geo. 5. c. 53.

Provisions as to rooms where food intended for sale is prepared or stored, &c.

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—cont.

- (a) no sanitary convenience, dustbin or ashpit shall be within, or communicate directly with, the room, or be so placed that offensive odours therefrom can penetrate into the room;
- (b) no cistern for the supply of water to the room shall be in direct communication with, or discharge directly into, a sanitary convenience, and there shall not be within the room any outlet for the ventilation of a drain, or, except with the approval of the local authority, an inlet into any drain conveying sewage or foul water;
- (c) the walls, ceiling, floor, windows and doors of the room shall be kept in a proper state of repair;
- (d) the walls, ceiling and doors of the room shall be painted, whitewashed, cleansed, or purified as often as may be necessary to keep them clean and the windows of the room shall be kept clean;
- (e) the room shall not be used as a sleeping place, and, so far as may be necessary to prevent risk of infection or contamination of food in the room, no sleeping place adjoining the room shall communicate therewith except through the open air, or through an intervening ventilated space;
- (f) except in the case of an artificially refrigerated room, suitable and sufficient means of ventilation shall be provided and suitable and sufficient ventilation shall be maintained;
- (g) no refuse or filth, whether solid or liquid, shall be deposited or allowed to accumulate in the room, except so far as may be necessary for the proper carrying on of the trade or business for which the room is used, and the floor of the room shall be cleansed as often as may be necessary to keep it clean;
- (h) cleanliness shall be observed by persons employed in the room, both in regard to the room

and all articles, apparatus and utensils therein,
and in regard to themselves and their clothing;
and

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PART I.
—cont.

- (i) there shall be provided in, or within reasonable distance of, the room suitable washing basins and a sufficient supply of soap, clean towels, and clean water, both hot and cold, for the use of persons employed in the room:

Provided that paragraph (i) of this subsection shall not apply in relation to a room which is used for the sale or storage, or for the sale and storage, of food contained in containers of such materials, and so closed, as to exclude all risk of contamination, but is not otherwise used for any purpose in connection with the preparation, storage or sale of food.

(2) If, in the case of a room to which the preceding subsection applies—

- (a) any of the requirements of that subsection are not complied with; or
- (b) any person does or permits any act or thing in contravention of that subsection, or fails to take all such steps as may be reasonably necessary to prevent risk of contamination of food in the room; or
- (c) any person prevents the owner of the room from executing any work necessary to make the room comply with the said requirements,

then, in the first-mentioned case, the occupier of the room and, in the other cases mentioned, the person in question, whether he be the occupier or not, shall be liable to a fine not exceeding twenty pounds and to a further fine not exceeding five pounds for each day during which the offence continues after conviction therefor.

(3) If, in the case of a room to which subsection (1) of this section applies, any of the requirements specified in paragraphs (a), (b), (c) or (f) of that subsection is not complied with, then, in so far as that requirement is of a structural character, the owner of the room shall, if he let it for the purpose of being used for the preparation, sale or storage of food, or, if not having so let it, he permits it to be so used after receiving notice from

A.D. 1938. the local authority, be liable to the penalty mentioned in the last preceding subsection, but without prejudice to the liability of the occupier under that subsection.

PART I.
—cont.

(4) Where the owner of a room who did not let it for the purpose of being used for the preparation, sale or storage of food executes any work necessary to make the room comply with the requirements of subsection (1) of this section, he may recover the expenses incurred by him in so doing from the occupier of the room summarily as a civil debt.

(5) In this section, the expression "room" includes a shop or cellar or any other part of a building, and a shed, store or outbuilding or any part thereof, and the provisions of this section, except paragraphs (e) and (f) of subsection (1) thereof, shall, so far as applicable, apply in relation to a yard, forecourt or area as they apply in relation to a room.

(6) Save in so far as may be expressly provided by Food Regulations, neither this nor the next succeeding section shall apply in relation to premises which are used for the preparation, sale or storage of articles prepared from, or consisting of, materials other than those of animal or vegetable origin, but are not otherwise used for any purpose in connection with the preparation, storage or sale of food.

Registration
of premises
used in con-
nection with
the manu-
facture or
sale of ice-
cream, or
preserved
food, &c.

14.—(1) Subject to the provisions of this section, and of subsection (6) of the last preceding section, no premises shall be used for—

- (a) the sale, or the manufacture for the purpose of sale, of ice-cream, or the storage of ice-cream intended for sale; or
- (b) the preparation or manufacture of sausages or potted, pressed, pickled or preserved food intended for sale,

unless they are registered under this section for that purpose by the local authority, and a person who uses any premises in contravention of the provisions of this subsection shall be guilty of an offence.

For the purposes of this subsection, the preparation of meat or fish by any process of cooking shall be deemed to be the preservation thereof.

(2) Subject to the following provisions of this section, the local authority shall, on the application of the occupier of, or of a person proposing to occupy, any premises, register those premises for the purposes of this section.

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—cont.

(3) If it appears to the local authority that any premises for the registration of which application has been made under this section, or which are registered under this section, do not satisfy the requirements of the last preceding section, or are otherwise unsuitable for use for the purpose for which they are proposed to be used or are being used, the authority shall serve on the applicant for registration or, as the case may be, on the occupier for the time being of the premises, a notice stating the place and time, not being less than seven days after the date of the service of the notice, at which they propose to take the matter into consideration and informing him that he may attend before them, with any witnesses whom he desires to call, at the place and time mentioned to show cause why the authority should not, for reasons specified in the notice, refuse the application or, as the case may be, cancel the registration of the premises.

(4) If a person on whom a notice is served under the last preceding subsection fails to show cause to the satisfaction of the local authority, they may refuse the application or, as the case may be, cancel the registration of the premises, and shall forthwith give notice to him of their decision in the matter, and shall, if so required by him within fourteen days of their decision, give to him within forty-eight hours a statement of the grounds on which it was based.

(5) A person aggrieved by the decision of a local authority under this section to refuse to register any premises, or to cancel the registration of any premises, may appeal to a court of summary jurisdiction.

(6) Upon any change in the occupation of premises registered under this section, the incoming occupier shall, if he intends to use them for the purpose for which they are registered, forthwith give notice of the change to the local authority, who shall thereupon make any necessary alteration in their register.

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—cont.

If a person required to give a notice under this subsection fails to do so, he shall be liable to a fine not exceeding five pounds.

(7) This section shall not apply in relation to premises used primarily as a club, hotel, inn or restaurant, and in relation to premises used as a theatre, cinematograph theatre, music hall or concert hall shall have effect as if in paragraph (a) of subsection (1) the words "the sale, or" and the words "or the storage of ice-cream intended for sale" were omitted.

(8) If at the commencement of this Act local Act provisions with respect to the registration of premises used for any of the purposes mentioned in subsection (1) of this section were in force in a district, this section shall not apply to that district until the Minister, on the application of the local authority, declares it to be in force therein.

(9) Where on an application made by a local authority under the last preceding subsection the Minister declares this section to be in force in the district of the authority, then, upon the declaration taking effect, such of the local Act provisions as may be specified in the declaration shall be repealed or, as the case may be, shall be repealed as respects the district of the authority, but any premises which immediately before the repeal of those provisions were registered thereunder for any purpose mentioned in subsection (1) of this section shall be deemed to have been registered under this section for that purpose.

Byelaws
with respect
to the
handling,
wrapping,
&c. of food,
and the
sale of food
in the open
air.

15.—(1) A local authority may make byelaws for securing the observance of sanitary and cleanly conditions and practices in connection with the handling, wrapping and delivery of food sold or intended for sale for human consumption, and in connection with the sale or exposure for sale in the open air of food intended for human consumption :

Provided that in London the authority to make byelaws under this section shall be—

(a) as respects the City of London, the Common Council; and

(b) as respects the rest of London, the county council.

(2) Byelaws made under this section by the London County Council may be made to apply to the whole or any part of London outside the City and it shall be the duty of every local authority to enforce within their district any byelaws so made.

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PART I.
—cont.

(3) If and so far as a byelaw made under this section is inconsistent with any regulation made under this Act, the latter shall prevail.

(4) An authority who propose to apply to the Minister for confirmation of any byelaws made under this section shall, in addition to complying with any other statutory requirements, publish in the London Gazette at least one month before the application is made notice of their intention to apply for confirmation.

16.—(1) Every dealer in ice-cream who in a street or other place of public resort sells, or offers or exposes for sale, ice-cream from a stall, or from a cart, barrow or other vehicle, or from a basket, pail, tray or other container used without a stall or vehicle, shall have his name and address legibly and conspicuously displayed on the stall, vehicle or container, as the case may be, and, if he fails to comply with the requirements of this section, shall be liable to a fine not exceeding forty shillings.

Notices to be displayed by persons selling ice-cream, &c. from stalls, carts, baskets, &c.

(2) A local authority may at any time resolve that, as from such date, not being less than four weeks from the passing of the resolution, as may be specified therein and until the resolution is revoked, this section shall apply within their district in relation to all kinds of food, or to any kinds of food specified in the resolution, as it applies in relation to ice-cream, and while any such resolution is in force, this section shall apply accordingly :

Provided that nothing in this subsection shall have effect in relation to milk.

(3) A local authority shall forthwith give notice to the Minister of the passing or revocation of a resolution under this section, and shall take such steps as he may direct for publishing notice of the coming into operation, or revocation, of any such resolution.

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Food poisoning.

PART I.
—cont.
Notification
of cases of
food
poisoning.

17.—(1) If a registered medical practitioner becomes aware, or suspects, that a patient whom he is attending within the district of any local authority is suffering from food poisoning, he shall forthwith send to the medical officer of health of that district a certificate stating—

(a) the name, age and sex of the patient, and the address of the premises where the patient is; and

(b) particulars of the food poisoning from which he is, or is suspected to be, suffering,

and also stating whether the case occurs in the private practice of the practitioner, or in his practice as medical officer of a public body or institution.

(2) A local authority shall pay to a registered medical practitioner for each certificate duly sent by him under the preceding subsection to their medical officer of health a fee of two shillings and sixpence if the case occurs in his private practice, and a fee of one shilling if it occurs in his practice as medical officer of any public body or institution.

(3) Where the medical practitioner attending a patient is himself the medical officer of health of the district, he shall be entitled to the fee to which, if he were not the medical officer of health, he would have been entitled in respect of a certificate sent by him to the medical officer.

(4) Notwithstanding any enactment which in London might entail such a disqualification, the acceptance by a medical practitioner of a fee under this section shall not subject him to disqualification for being a member of any authority or holding any other public office.

Provisions
as to sus-
pected
food.

18.—(1) If the medical officer of health of a district has reasonable ground for suspecting that any food of which he, or any other officer of the local authority of the district, has procured a sample under the provisions of this Act is likely to cause food poisoning, he may give notice to the person in charge of the food that, until his investigations are completed, the food, or any specified portion thereof, is not to be used for human consumption and either is not to be removed, or is not to be removed except to some place specified in the notice.

A person who uses or removes any food in contravention of the requirements of a notice given under this subsection shall be liable to a fine not exceeding ten pounds.

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—cont.

(2) If, as a result of his investigations, the medical officer is satisfied that the food in question, or any portion thereof, is likely to cause food poisoning, he may deal with it as food falling within subsection (1) of section ten of this Act and subsections (2) and (3) of that section shall apply accordingly, but, if he is satisfied that it may safely be used for human consumption, he shall forthwith withdraw his notice.

(3) If a notice given under subsection (1) of this section is withdrawn by the medical officer of health, or if the justice of the peace before whom any food is brought under this section refuses to condemn it, the local authority shall compensate the owner of the food to which the notice related for any depreciation in its value resulting from the action taken by the medical officer.

Meat from knackers' yards.

19.—(1) No person shall sell, or offer or expose for sale, for human consumption any part of an animal which has been slaughtered in a knacker's yard.

No part of an animal slaughtered in a knacker's yard to be sold for human consumption.

(2) A person who contravenes the provisions of this section shall be guilty of an offence and, if he is licensed under this Act, or the Public Health (London) Act, 1936, to keep either a slaughter-house or a knacker's yard, the court may, in addition to any other penalty, cancel his licence.

PART II.

PROVISIONS AS TO MILK, DAIRIES AND ARTIFICIAL CREAM.

Milk and Dairies.

20.—(1) The Minister may make regulations (in this Act referred to as "Milk and Dairies Regulations") for all or any of the purposes mentioned in any of the following paragraphs, that is to say—

Milk and Dairies Regulations.

(a) for the registration of persons carrying on, or proposing to carry on, the trade of a dairyman

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PART II.
—cont.

- and the registration of dairies, and prohibiting any person from carrying on the said trade unless he and any premises used by him as a dairy are duly registered;
- (b) for the inspection of dairies, and of persons in or about dairies who have access to the milk, or to the churns or other milk vessels;
 - (c) with respect to the lighting, ventilation, cleansing, drainage, and water supply of dairies;
 - (d) for securing the cleanliness of churns and other milk vessels and appliances;
 - (e) prescribing the precautions to be taken for protecting milk against infection or contamination;
 - (f) for preventing danger to health from the sale of infected, contaminated, or dirty milk, and in particular for prohibiting the supply or sale of milk suspected of being infected;
 - (g) imposing obligations on dairymen and their employees in regard to cases of infectious illness;
 - (h) regulating the cooling, conveyance, and distribution of milk;
 - (i) with respect to the labelling, marking, or identification, and the sealing or closing, of churns and other vessels used for the conveyance of milk, the labelling of vessels in which milk is sold or offered or exposed for sale or delivered, and the display of the vendor's name and address on any stall, or any cart, barrow or other vehicle, from which milk is sold or delivered;
 - (j) in cases where no express provision is made by this Act, prohibiting or restricting—
 - (i) the addition of any substance to, or the abstraction of fat or any other constituent from, milk;
 - (ii) the sale of milk to which any such addition, or from which any such abstraction, has been made, or which has been otherwise artificially treated;
 - (k) for preventing danger to health from the importation of milk.

In this subsection the expression "milk" means milk intended for sale or sold for human consumption, or intended for manufacture into products for sale for human consumption.

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PART II.
—cont.

(2) Regulations made under paragraph (i) or paragraph (j) of the preceding subsection shall not apply in relation to cream in so far as they are made for any purpose for which regulations with respect to cream may be made under paragraph (b) or paragraph (c) of subsection (1) of section eight of this Act.

(3) Regulations made under this section may be general regulations or regulations limited to a specified area.

21.—(1) Milk and Dairies Regulations may contain provisions for all or any of the purposes mentioned in any of the following paragraphs, that is to say—

Use of
special
designations
in con-
nection with
milk.

- (a) prescribing, in relation to milk of any description, such designation (hereinafter referred to as a "special designation") as the Minister considers appropriate;
- (b) providing, as respects any special designation, for the granting by the Minister, or by county councils or local authorities, of licences to producers and purveyors of milk authorising the use of that special designation;
- (c) prescribing the periods for which, and the conditions (including conditions as to the payment of fees) subject to which, licences, or licences of any particular class, are to be so granted;
- (d) providing for the suspension or revocation of a licence in the event of a breach of any condition subject to which it was granted; and
- (e) entitling any person aggrieved by the refusal, suspension or revocation of a licence by a county council or local authority to appeal to the Minister.

(2) No person shall, for the purpose of the sale or advertisement of any milk—

- (a) use a special designation in any manner calculated to suggest that it refers to that milk, unless he holds a licence authorising the use of that designation in connection with that milk; or

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PART II.
—cont.

(b) refer to that milk by any such description, not being a special designation, as is calculated falsely to suggest—

(i) that there is in force a licence authorising the use of a special designation in connection with that milk; or

(ii) that the milk is tested, approved or graded by any competent person; or

(iii) that the cows from which the milk is derived are free from the infection of tuberculosis or of any other disease.

(3) A person who contravenes any of the provisions of the last preceding subsection shall be guilty of an offence, and in any proceedings taken by virtue of paragraph (b) of that subsection it shall rest on the defendant to prove the truth of any suggestion which, in the opinion of the court, his acts or conduct, as proved by the prosecution, are or is calculated to convey.

(4) It shall be the duty, in London, of Food and Drugs authorities and, elsewhere, of councils of counties and county boroughs, to enforce the provisions of subsection (2) of this section, except that in a county district it shall be the duty of the local authority to enforce them in the case of persons who are not producers of milk.

Power to
refuse,
or cancel,
registration
of dairy-
men.

22.—(1) If it appears to an authority by whom dairymen are registered in pursuance of Milk and Dairies Regulations that the public health is, or is likely to be, endangered by any act or default of a person who has applied to be, or is, registered as a retail purveyor of milk, being an act or default, committed whether within or without the district of the authority, in relation to the quality, storage or distribution of milk, they shall serve on him a notice stating the place and time, not being less than seven days after the date of the service of the notice, at which they propose to take the matter into consideration, and informing him that he may attend before them, with any witnesses whom he desires to call, at the place and time mentioned to show cause why they should not, for reasons specified in the notice, refuse to register him as a retail purveyor of milk, or, as the case may be, cancel his registration as such, either generally or in respect of any specified premises.

(2) If a person on whom a notice is served under the preceding subsection fails to show cause to the satisfaction of the authority, they may refuse to register him as a retail purveyor or, as the case may be, cancel his registration as such, and shall forthwith give notice to him of their decision in the matter, and shall, if so required by him within fourteen days of their decision, give to him within forty-eight hours a statement of the grounds on which it was based.

(3) A person aggrieved by the decision of an authority under this section to refuse to register him, or to cancel his registration, may appeal to a court of summary jurisdiction.

(4) The court before which a person registered as a retail purveyor of milk is convicted of an offence under any of the provisions of this Act relating to milk, or under any Milk and Dairies Regulations may, in addition to any other penalty, cancel his registration as such.

(5) An authority may require a person who applies to them for registration as a retail purveyor of milk to give to them, before his application is considered, information as to whether he is, or has been, registered as such a purveyor, either in their district or in the district of any other authority, and, if an applicant who is so required gives to the authority any information which is false in any material respect, he shall be guilty of an offence.

(6) Where under this section a person's application for registration as a retail purveyor of milk is refused, or his registration is cancelled, he shall not be liable for any breach of a contract for the purchase of further supplies of milk from another person, if such refusal or cancellation was due to the quality of milk supplied by that person.

(7) In London the provisions of this section shall apply also in relation to dairymen who are not retail purveyors of milk as they apply in relation to dairymen who are such purveyors.

23.—(1) The Minister of Agriculture and Fisheries may make regulations for determining what deficiency in any of the normal constituents of milk, or what proportion of water, in a sample shall for the purposes

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PART II.

—cont.

Regulations
as to pre-
sumptive
evidence of
adulteration
of milk.

A.D. 1938. of this Act raise a presumption, until the contrary is proved, that the article sampled is not genuine milk.

PART II.
—cont.

(2) Regulations made under this section shall be laid before Parliament as soon as may be after they are made.

Certain
additions
not to be
made to
milk, and
certain
liquids not
to be sold
as milk.

24.—(1) No person shall—

- (a) add any water or colouring matter, or any dried or condensed milk or liquid reconstituted therefrom, to milk intended for sale for human consumption; or
- (b) add any separated milk, or mixture of cream and separated milk, to unseparated milk intended for such sale; or
- (c) sell, or offer or expose for sale, or have in his possession for the purpose of sale, for human consumption any milk to which any addition has been made in contravention of the provisions of this subsection.

(2) No person shall sell, or offer or expose for sale, under the designation of milk any liquid in the making of which any separated milk or any dried or condensed milk has been used.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

Prohibition
of sale of
tuberculous
milk, or
milk of cows
suffering
from
tuber-
culosis, &c.

25.—(1) No person shall—

- (a) sell, or offer or expose for sale, for human consumption; or
- (b) use in the manufacture of products for sale for human consumption,

the milk of any cow which to his knowledge has given tuberculous milk, or is suffering from emaciation due to tuberculosis, or from tuberculosis of the udder or any other disease of cows to which this section applies.

(2) In proceedings under this section, the defendant shall be deemed to have known that a cow had given tuberculous milk, or was so suffering as aforesaid, if he could with ordinary care have ascertained the fact.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

(4) The diseases of cows to which this section applies are those specified in Part I of the First Schedule

to this Act and any other disease to which the provisions of this section are extended by Milk and Dairies Regulations.

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PART II.
—cont.

(5) It shall be the duty of the council of every county and county borough to enforce the provisions of this section.

26. Where the local authority of a district outside London are not a welfare authority for the purposes of Part VII of the Public Health Act, 1936, they may, with the approval of the Minister, establish depots for the sale, at not less than cost price, of milk specially prepared for consumption by infants under two years of age, and for that purpose may purchase and prepare milk and provide any necessary plant.

Establishment by certain councils of milk depots.
26 Geo. 5. &
1 Edw. 8.
c. 49.

Artificial cream.

27.—(1) No person shall sell, or offer or expose for sale, for human consumption under a description or designation including the word “cream” any substance purporting to be cream or artificial cream, unless—

Regulation of sale of artificial cream.

(a) the substance is cream; or

(b) where the substance is artificial cream, the word “cream” is immediately preceded by the word “artificial.”

(2) No person shall use any vessel for conveying artificial cream intended for sale for human consumption, or for containing artificial cream at any time when it is exposed for such sale, unless the words “artificial cream” are printed in large and legible letters of uniform size and conspicuously visible either on the vessel itself, or on a label securely attached thereto.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

28.—(1) Artificial cream shall not be manufactured, sold, or exposed or kept for sale for human consumption except on premises registered by the Food and Drugs authority :

Premises where artificial cream is

A.D. 1938.

PART II.
—cont.manu-
factured or
sold to be
registered.

Provided that registration under this section shall not be required in respect of—

- (a) the manufacture of artificial cream by any person solely for his domestic purposes; or
- (b) the manufacture of artificial cream on any premises for use in the preparation on those premises of some other food; or
- (c) the sale, exposure or keeping for sale of artificial cream on any premises where it is supplied only in the properly closed and unopened vessels in which it is delivered to those premises.

(2) A person who uses any unregistered premises in contravention of the foregoing provisions of this section shall be guilty of an offence, and the court may order that any machine found on the premises which is suitable for use in the manufacture of artificial cream shall be forfeited.

(3) A Food and Drugs authority shall, on the application of the occupier of, or of a person proposing to occupy, any premises, register those premises for the purposes of this section.

(4) Upon any change in the occupation of premises registered under this section, the incoming occupier shall, if he intends to use them for the purpose for which they are registered, forthwith give notice of the change to the authority, who shall thereupon make any necessary alteration in their register.

If a person required to give a notice under this subsection fails to do so, he shall be liable to a fine not exceeding five pounds.

(5) Where any substance having the composition of cream or artificial cream is sold or exposed or kept for sale on premises registered under this section, it shall be presumed to be artificial cream, unless the contrary is proved.

Application
to artificial
cream of
certain
provisions
relating to
cream.

29. Such of the provisions of this Part of this Act and of any Milk and Dairies Regulations as relate to cream, other than provisions relating to the registration of dairymen and dairies, shall, unless, in the case of regulations, the regulations otherwise provide, apply in relation to artificial cream.

PART III.

A.D. 1938.

PROVISIONS AS TO OTHER KINDS OF FOOD.

Bread and flour.

30.—(1) The Minister may make regulations (in this Act referred to as “Bread and Flour Regulations”) for all or any of the purposes mentioned in any of the following paragraphs, that is to say:—

Regulations as to the composition of bread and the addition of substances to flour.

- (a) prescribing the kinds of flour other than wheat flour and the other substances which may be used in the making of bread for sale;
- (b) prescribing the descriptions under which bread made of flour other than wheat flour may be sold, and the manner in which any such bread is to be marked;
- (c) prohibiting or restricting the addition of any substance, or the application of any treatment, to flour intended for sale or for use in the making of bread for sale;
- (d) prescribing the descriptions under which, and conditions subject to which, flour may be sold; and
- (e) for preventing danger to health from the importation, preparation, transport, storage, exposure for sale and delivery of bread or flour.

(2) Regulations shall not be made for any of the purposes mentioned in paragraph (a) or paragraph (c) of the preceding subsection, unless they are expressed to be in the opinion of the Minister necessary or expedient for preventing danger to health or loss of nutritional value, or otherwise for protecting purchasers.

31. If any flour or other substance which under Bread and Flour Regulations may not be used in the making of bread for sale is found in a bakehouse, or any substance which under those regulations may not be added to flour is found in a flour-mill, the occupier of the bakehouse or mill, as the case may be, shall be guilty of an offence, unless he proves that the substance in question was not intended to be used in the making of bread for sale, or, as the case may be, was not intended to be added to any flour intended for sale.

Prohibition of adulterants in bakehouses and mills.

A.D. 1938. *Margarine, margarine-cheese, butter and milk-blended butter.*

PART III.
—cont.
Limit of
water in
butter, &c.,
and pro-
visions as to
butter in
margarine.

32.—(1) A person who sells, or offers or exposes for sale, or has in his possession for the purpose of sale—

- (a) any butter which contains more than sixteen per cent. of water; or
- (b) any margarine which contains more than sixteen per cent. of water, or the fat of which contains more than ten per cent. of fat derived from milk; or
- (c) any milk-blended butter which contains more than twenty-four per cent. of water,

shall be guilty of an offence.

(2) Any label or advertisement which states or suggests that margarine with which it is given, or to which it relates, contains butter shall state the percentage of butter which it contains:

Provided that no offence shall be deemed to have been committed under this subsection, if the figure stated as the percentage of butter does not differ by more than two from the actual percentage.

A person who gives with any margarine sold by him a label, whether attached to or printed on the wrapper or container or not, which does not comply with the requirements of this subsection, or who publishes, or is a party to the publication of, an advertisement which does not comply therewith, shall be guilty of an offence.

Conditions
to be ob-
served in
dealings in
margarine,
margarine-
cheese, and
milk-
blended
butter.

33.—(1) A person who sells, or forwards by any public conveyance, any margarine, margarine-cheese or milk-blended butter, shall sell or consign it as margarine or margarine-cheese, or, in the case of milk-blended butter, under an approved name.

(2) Every person dealing in margarine, whether wholesale or by retail, and whether as manufacturer, importer, consignor, consignee, commission agent or otherwise, shall conform to such of the following regulations as may be applicable, that is to say:—

- (a) every container containing margarine shall have the word "Margarine" branded or durably marked on the bottom and sides and also, if it be closed, on the top thereof, in block

letters not less than three-quarters of an inch long, the brand or mark being on the container itself and not only on a label, ticket or other thing attached thereto;

A.D. 1938.

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PART III.
—*cont.*

- (b) there shall be attached to every parcel of margarine exposed for sale by retail, in such manner as to be clearly visible to a purchaser, a label marked "Margarine" in printed block letters not less than one and a half inches long;
- (c) margarine when sold by retail, save in a container branded or durably marked as aforesaid, shall be delivered to the purchaser in a paper wrapper, with the word "Margarine" printed on the outside of the wrapper, or, if more wrappers than one are used, on the outside of the outer wrapper, in block letters not less than half an inch long and distinctly legible, and the outside of that wrapper shall bear no other printed matter, except such matter as may be required by or under any enactment;
- (d) margarine shall not be described on, or on a label enclosed within, any wrapper enclosing or container containing it, or on any label attached to a parcel thereof, or in any advertisement or invoice thereof, by any name other than either "Margarine" or a name combining the word "Margarine" with an approved fancy or other descriptive name printed in type not larger than, and in the same colour, as the letters of the word "Margarine."

(3) The requirements of paragraphs (a), (b) and (c) of the last preceding subsection shall apply in relation to margarine-cheese and to persons dealing therein with the substitution of "Margarine-cheese" for "Margarine":

Provided that, where margarine-cheese is sold or dealt in otherwise than by retail, it shall be sufficient compliance with those requirements if it is itself conspicuously marked with the words "Margarine-cheese."

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PART III.
—*cont.*

(4) The requirements of the said paragraphs (a), (b) and (c) shall apply in relation to milk-blended butter and to persons dealing therein with the substitution of an approved name for the word "Margarine," but on the outside of the wrapper referred to in the said paragraph (c) there shall, in addition to the approved name, be printed in an approved manner an approved description of the article, setting out the percentage of water contained therein.

(5) A person who contravenes any of the foregoing provisions of this section shall be guilty of an offence.

(6) Any substance resembling butter or cheese which is exposed for sale and is not marked in the manner in which margarine, milk-blended butter or margarine-cheese is required by this section to be marked shall be presumed to be exposed for sale as butter or cheese, as the case may be.

(7) In this section the expression "approved" means approved by the Minister of Agriculture and Fisheries, who, in approving for the purposes of this section names to be used in relation to margarine or milk-blended butter, shall not approve any name which refers to, or is suggestive of, butter or anything connected with the dairy interest.

Registration
of factories
and whole-
sale pre-
mises.

34.—(1) No premises shall be used—

- (a) as a factory of margarine, margarine-cheese, or milk-blended butter;
- (b) for carrying on the business of a wholesale dealer in margarine, margarine-cheese, or milk-blended butter; or
- (c) as a butter factory, that is to say, a place at which by way of trade butter is blended, re-worked, or subjected to any other treatment, but not so as to cease to be butter,

unless they are registered by the Food and Drugs authority for the purpose in question.

(2) Subject to the provisions of the next succeeding subsection, a Food and Drugs authority shall, on the application of the occupier of, or of a person proposing to occupy, any premises, register those premises for the purposes of this section.

(3) Premises shall not be registered or used as a butter factory if they form part of, or communicate otherwise than by a highway with, any other premises which are required to be registered under paragraph (a) or paragraph (b) of subsection (1) of this section.

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PART III.
—*cont.*

(4) A person who on premises not registered for the purpose in question carries on any such manufacture, business or trade as is mentioned in subsection (1) of this section, or who uses any premises as a butter factory in contravention of the provisions of the last preceding subsection, shall be guilty of an offence.

(5) Upon any change in the occupation of premises registered under this section, the incoming occupier shall, if he intends to use them for the purpose for which they are registered, forthwith give notice of the change to the Food and Drugs authority, who shall thereupon make any necessary alteration in their register.

If a person required to give a notice under this subsection fails to do so, he shall be liable to a penalty not exceeding five pounds.

(6) A Food and Drugs authority shall forthwith give notice to the Minister of Agriculture and Fisheries of any registration of premises under this section, of any change in the occupation of registered premises and of the deletion from the register of any premises which have ceased to be used for the purpose for which they were registered.

35.—(1) Every occupier of a factory of margarine, margarine-cheese, or milk-blended butter, and every wholesale dealer in any such substance, shall keep a register showing the quantity and destination of each consignment of margarine, margarine-cheese, or milk-blended butter, as the case may be, sent out from his factory or place of business, and the register shall be open to the inspection of any officer of the Minister of Agriculture and Fisheries.

Register
of consign-
ments to be
kept in
factories,
&c.

(2) If any such occupier or dealer—

(a) fails to keep such a register posted up to date;
or

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PART III.
—cont.

(b) wilfully makes in the register an entry which is false in any particular, or wilfully omits to enter in the register any particular which ought to be entered; or

(c) refuses to produce the register when required to do so by an officer of the Minister of Agriculture and Fisheries,

he shall be guilty of an offence.

Prohibition
of adul-
terants in
butter
factories.

36. If any substance intended to be used for the adulteration of butter is found in a butter factory, the occupier of the factory shall be guilty of an offence, and, if any oil or fat capable of being so used is found in such a factory, it shall be presumed to be intended to be so used, unless the contrary is proved.

Ice-cream.

Provisions
as to
ice-cream
likely to
cause milk-
borne
disease.

37.—(1) Every manufacturer of, or dealer in, ice-cream shall, upon the occurrence of any milk-borne disease among the persons living or working in or about the premises on which the ice-cream is manufactured, stored or sold, forthwith give notice thereof to the medical officer of health of the district and, if he fails to do so, shall be liable to a fine not exceeding five pounds.

(2) If the medical officer of health of a district has reasonable ground for suspecting that any ice-cream, or substance intended for use in the manufacture of ice-cream, is likely to cause any milk-borne disease, he may give notice to the person in charge thereof that, until further notice, the ice-cream or substance in question, or any specified portion thereof, is not to be used for human consumption and either is not to be removed, or is not to be removed except to some place specified in the notice.

A person who uses or removes any ice-cream or substance in contravention of the requirements of a notice given under this subsection shall be liable to a fine not exceeding ten pounds.

(3) If on further investigation the medical officer is satisfied that the ice-cream or substance in question may safely be used for human consumption, he shall forthwith withdraw his notice, but, if he is not so satisfied, he shall cause it to be destroyed, and he shall also cause to be destroyed any other ice-cream or such substance as

aforesaid then on the premises as to which he is not so satisfied.

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PART III.
—cont.

(4) Subject as hereinafter provided, where a notice given under subsection (2) of this section is withdrawn by the medical officer, or the medical officer acting under subsection (3) of this section causes any ice-cream or other substance to be destroyed, the local authority shall compensate the owner of the ice-cream or other substance in question for any depreciation in its value resulting from the action taken by the medical officer or, as the case may be, for the loss of its value :

Provided that—

(a) no compensation shall be payable under this section in respect of the destruction of any ice-cream or substance if the local authority prove that it was likely to cause any milk-borne disease ;

(b) no compensation shall in any case be payable under this section—

(i) in respect of any ice-cream or substance manufactured on, or brought within, any premises while a notice given under subsection (2) of this section with respect to anything on those premises was operative ; or

(ii) in any case where the owner of the ice-cream or substance in question has failed to give a notice which he was required by subsection (1) of this section to give.

For the purposes of this subsection, the value of any ice-cream or other substance shall not be assessed at a sum exceeding the cost incurred by the owner in making or purchasing it.

(5) In this section the expression “ milk-borne disease ” means any disease specified in Part II of the First Schedule to this Act and any other disease which the Minister may by order declare to be for the purposes of this section a milk-borne disease.

Horseflesh.

38.—(1) No person shall sell, or offer or expose for sale, or have in his possession for the purpose of sale, any horseflesh for human consumption elsewhere than in

Sign to be
displayed
on shops,
&c., where

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PART III.

—cont.

horseflesh is
sold for
human con-
sumption.

a shop, stall, or place over or on which a notice in legible letters stating that horseflesh is sold there is displayed in a conspicuous position so as to be visible whenever horseflesh is being sold, or offered or exposed for sale.

(2) No person shall supply horseflesh for human consumption to a purchaser who has not asked to be supplied with horseflesh, or who has asked to be supplied with some compound article of food not ordinarily made of horseflesh.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

(4) If any horseflesh is exposed for sale elsewhere than in a shop, stall or place distinguished as aforesaid without anything to show that it was not intended for sale for human consumption, the onus of proving that it was not so intended shall rest upon the person exposing it for sale.

(5) In this section the expression "horseflesh" means the flesh of horses, asses and mules, and includes any such flesh whether cooked or uncooked and, whether alone, or accompanied by, or mixed with, any other substance, and the expression "flesh" includes any part of an animal.

*Shell-fish.*Provision of
means for
cleansing
shell-fish.

39.—(1) A county council or a local authority may provide, whether within or without their county or district, tanks or other apparatus for cleansing shell-fish and may make charges in respect of the use of any tank or other apparatus so provided.

(2) A county council or a local authority may contribute towards the expenses incurred under this section by any other council or any joint committee, or towards expenses incurred by any other person in providing, and making available to the public, means for cleansing shell-fish.

(3) Any expenses incurred by a county council under this section shall, if the Minister by order so directs, be defrayed as expenses for special county purposes chargeable upon such part of the county as may be provided by the order, but any such order may be revoked or varied by a subsequent order.

(4) In London, a local authority may, with the consent of the Minister, borrow for the purposes of this section as if they were purposes of the Public Health (London) Act, 1936.

A.D. 1938.

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PART III.
—cont.

(5) In this section the expression "cleansing shell-fish" includes the subjection of shell-fish to any germicidal treatment.

(6) Nothing in this section shall authorise the establishment of any tank or other apparatus, or the execution of any other work, on, over or under tidal lands below high-water mark of ordinary spring tides, except in accordance with such plans and sections, and subject to such restrictions and conditions, as may, before the work is commenced, be approved by the Board of Trade under the hand of one of the secretaries, under-secretaries or assistant secretaries of the Board.

PART IV.

PROVISIONS AS TO IMPORTATION.

40. If there is imported into the United Kingdom, within the meaning of that expression as used in the Customs Consolidation Act, 1876—

Restrictions
on the im-
portation of
certain
foods.
39 & 40 Vict.
c. 36.

- (a) any margarine or margarine-cheese, except in containers conspicuously marked "Margarine" or "Margarine-cheese," as the case may require;
- (b) any adulterated or impoverished milk, except in containers conspicuously marked with a name or description indicating that the milk has been so treated;
- (c) any other adulterated or impoverished food to which His Majesty may by Order in Council direct that this section shall be applied, except in containers conspicuously marked with a name or description indicating that the food has been so treated;
- (d) any milk-blended butter, except in containers conspicuously marked with a name approved for the purpose by the Minister of Agriculture and Fisheries, not being a name which refers to, or is suggestive of, butter or anything connected with the dairy interest;

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PART IV.

—cont.

(e) any butter, margarine or milk-blended butter the sale of which would be an offence under subsection (1) of section thirty-two of this Act; or

(f) any food which does not comply with any relevant provisions contained in regulations made under this, or any other, Act with respect to the importation of food,

the importer shall be guilty of an offence under this Part of this Act.

Power of
Commissioners of
Customs and Excise
to have
imported
food
sampled.

41.—(1) The Commissioners of Customs and Excise (in this Part of this Act referred to as “the Commissioners”) shall, in accordance with directions given by the Treasury, take such samples of consignments of imported food as may be necessary for the enforcement of the provisions of this Part of this Act.

(2) Where the Commissioners take a sample of any consignment in pursuance of such directions, they shall divide it into not less than three parts, and send one part to the importer and one part to the Government Chemist and retain one part.

(3) Where a sample taken under this section has been analysed and it appears from the certificate of the Government Chemist that an offence under this Part of this Act has been committed, the Commissioners shall forthwith send a copy of the certificate to the importer.

Prosecu-
tions and
penalties
for offences
under
Part IV.

42.—(1) Prosecutions for offences under this Part of this Act shall be undertaken by the Commissioners.

(2) Whenever the Commissioners are of opinion that an offence under this Part of this Act has been committed, they shall communicate to the Minister of Agriculture and Fisheries the name of the importer and such other facts as they possess, or may obtain, as to the destination of the consignment.

(3) A person who commits an offence under this Part of this Act shall be liable in the case of a first offence to a customs penalty not exceeding twenty pounds, and in the case of a subsequent offence, to a customs penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such a penalty and such imprisonment :

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PART IV.
—cont.

Provided that, if in any particular case the Commissioners so elect, the maximum customs penalty shall be a sum equal to the value of the goods imported bearing the same mark or description, to be estimated and taken according to the rate and price for which goods of the like kind, but of the best quality, were sold at, or about, the time of the importation.

(4) For the purposes of this Part of this Act, food shall be deemed to be adulterated or impoverished if any other substance has been added to it, or if any part of it has been abstracted, so as in either case to affect injuriously its nature, substance, or quality :

Provided that, where regulations made under this, or any other, Act contain provisions prohibiting or restricting the addition of any substance to food, the addition of any such substance—

- (a) if made in contravention of the regulations shall, and
- (b) if made to an amount not exceeding the limit, if any, specified in the regulations shall not,

for the purposes of this subsection be deemed to affect injuriously the nature, substance or quality of the food in question.

(5) In any proceedings for an offence under this Part of this Act, the certificate of the Government Chemist of the result of an analysis shall be sufficient evidence of the facts therein stated, unless the defendant requires that the person who made the analysis shall be called as a witness, and the defendant shall not be entitled so to do unless at least three clear days before the day on which the summons is returnable he gives notice to the prosecutor that he requires that person's attendance.

The reasonable costs and expenses of such a person's attendance shall be paid by the prosecutor or defendant, as the court may order.

(6) In any such proceedings, the part of the sample retained by the Commissioners shall be produced at the hearing and the court may, if it thinks fit, and upon the request of either party shall, cause it to be sent for a joint analysis and report to the Government Chemist and some other person holding such qualifications as may be prescribed for the office of public analyst, and the

A.D. 1938. costs of the analysis shall be paid by the prosecutor or
defendant as the court may order.

PART IV.
—cont.

(7) For the purposes of this section, a document purporting to be a certificate of the Government Chemist and produced by the prosecution, shall, until the contrary is proved, be taken to be such a certificate.

Construc-
tion of
Part IV.

43. This Part of this Act shall be construed as one with the Customs Consolidation Act, 1876, as amended by any subsequent enactment, and shall be deemed not to be part of this Act :

Provided that in this Part of this Act—

- (a) any expression to which a meaning is assigned by section one hundred of this Act shall have that meaning;
- (b) any reference to this Act shall be construed as such a reference and not as a reference to the said Act of 1876.

PART V.

MARKETS, SLAUGHTER-HOUSES AND COLD-AIR STORES.

Markets.

Establish-
ment, or
acquisition
of market
by local
authority.

44.—(1) Subject to the provisions of this section, an urban authority and, with the consent of the Minister, a rural authority may—

- (i) establish a market within their district;
- (ii) acquire by agreement (but not otherwise), either by purchase or on lease, the whole or any part of an existing market undertaking within their district, and any rights enjoyed by any person within their district in respect of a market and of tolls;

and, in either case, may provide—

- (a) a market place with convenient approaches thereto;
- (b) a market-house and other buildings convenient for the holding of a market.

(2) Without the consent of the person concerned, no market shall be established in pursuance of this section so as to interfere with any rights, powers or privileges enjoyed within the district in respect of a market by any person :

A.D. 1938.

—
PART V.
—cont.

Provided that, for the purposes of this subsection, another local authority shall not be deemed to be enjoying any rights, powers or privileges within the district by reason only of the fact that they have established a market within their own district either under paragraph (i) of the preceding subsection or (otherwise than by acquisition of a then existing market) under any corresponding provision repealed by this Act, or by the Public Health Act, 1875.

38 & 39 Vict.
c. 55.

(3) In the following provisions of this Act relating to markets, the expression "market authority" means a local authority who have established or acquired a market under this section, or under any corresponding enactment repealed by this Act or by the Public Health Act, 1875.

45. The owner of a market undertaking, or of any rights in respect of a market and of tolls, whether established under, or enjoyed by virtue of, statutory powers or not, may sell or lease to a local authority the whole or any part of his market undertaking or rights, but subject to all liabilities attaching thereto :

Power of
owner of
market to
sell it to a
local
authority.

Provided that a sale by a market company under this section must be authorised, if the company is a company within the meaning of the Companies Act, 1929, by a special resolution of the members passed in the manner provided in Part IV of that Act, and, if the company is not such a company, by a resolution passed by three-fourths in number and value of the members present, either personally or by proxy, at a meeting specially convened for the purpose with notice of the business to be transacted.

46. A market authority may, with the approval of the Minister, appoint the days on which, and the hours during which, markets are to be held.

Market days
and hours.

47.—(1) The Minister may, on the application of a market authority, approve for the purposes of the market a table of stallages, tolls and charges, and the authority may demand in respect of the market, and

Stallages,
tolls and
other
charges.

A.D. 1938. in respect of the weighing and measuring of articles and
— vehicles, either the stallages, tolls and charges approved
PART V. by the Minister, or such less stallages, tolls and charges
—cont. as they may from time to time determine.

(2) A market authority who provide a weighing machine for weighing cattle, sheep or swine may demand in respect of the weighing of such animals charges not exceeding those specified in the Second Schedule to this Act, or such other charges as the Minister may from time to time approve.

(3) The authority shall keep exhibited in conspicuous places in the market place and in any market house tables stating in large and legibly printed characters the several stallages, tolls and charges payable under this Act, and shall keep so much of the tables as relates to charges payable in respect of the weighing of vehicles, or, as the case may be, in respect of the weighing of animals, conspicuously exhibited at every weighing machine provided by them in connection with the market for the purpose in question.

(4) A person who demands or accepts a stallage, toll or charge greater than that for the time being authorised shall be liable to a fine not exceeding forty shillings.

(5) Nothing in this section shall apply in relation to rents charged by a market authority in respect of the letting of accommodation within their market for any period longer than one week.

Time for
payment of
stallages,
&c.

48.—(1) Subject to the provisions of this section, stallages, tolls and charges payable in respect of the market shall be paid from time to time on demand to an authorised market officer.

(2) Charges payable in respect of the weighing or measuring of articles, vehicles or animals shall be paid to an authorised market officer by the persons bringing the articles, vehicles or animals to be weighed or measured before they are weighed or measured.

(3) Tolls payable in respect of animals brought to the market for sale shall be payable and may be demanded by an authorised market officer so soon as the animals in respect of which they are payable are brought into the

market place and before they are put into any pen, or tied up in the market place, but further tolls shall be payable and may be demanded in respect of any of the animals which are not removed within one hour after the close of the market.

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PART V.
—cont.

49.—(1) If a person liable to pay any stallage, toll or charge authorised to be taken under this Act does not pay it when lawfully demanded, the market authority may, by any authorised market officer, levy it by distress of all or any of the animals, poultry or other articles in respect of which the stallage, toll or charge is payable, or of any other animals, poultry or articles in the market belonging to, or in charge of, the person liable.

Recovery of
stallages,
&c.

(2) Any such stallage, toll or charge may also be recovered either summarily as a civil debt, or as a simple contract debt in any court of competent jurisdiction.

50. Any person, other than a licensed hawker or certificated pedlar, who on a market day and during market hours sells or exposes for sale in any place within the district of the market authority and within such distance from the market as the authority may by byelaw declare, except in his own dwelling place or shop or in, or at the door of, any premises to a person resident therein, any articles specified in the byelaw, being articles commonly sold in the market, shall be liable to a fine not exceeding forty shillings.

Sales else-
where than
in market, or
in shops, &c.
prohibited
during
market
hours.

The market authority shall keep exhibited in conspicuous positions in the vicinity of the market notices stating the effect of any byelaw made under this section.

51.—(1) A market authority shall provide sufficient scales, weights, measures and weighing machines for weighing or measuring articles sold in the market and vehicles in which articles are brought for sale in the market, and shall appoint officers to attend to the weighing and measuring of such articles and vehicles.

Provision
and verifi-
cation of
weighing
machines,
scales, &c.

(2) A market authority in whose market cattle, sheep or swine are sold shall, unless there is in force an order of the Minister of Agriculture and Fisheries declaring that the circumstances are such as to render compliance

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PART V.

—cont.

with this subsection unnecessary, provide to the satisfaction of that Minister a weighing machine, or weighing machines, adapted for weighing such animals and appoint officers to attend to the weighing thereof.

16 & 17
Geo. 5. c. 21.

A weighing machine provided under this subsection shall for the purposes of section one of the Markets and Fairs (Weighing of Cattle) Act, 1926, be deemed to have been provided for the purpose of complying with the provisions of the principal Act therein referred to.

(3) The authority shall cause all such scales, weights, measures and weighing machines to be verified at least twice in every year by the inspector of weights and measures acting for, or for the area comprising, their district.

Provisions
as to the
weighing of
articles
and of
vehicles with
their loads
and after
discharge.

52.—(1) A person selling, or offering for sale, any articles in the market shall, if required so to do by the buyer, cause them to be weighed or measured by the scales and weights or measures provided by the market authority and, if he refuses so to do, shall be liable to a fine not exceeding forty shillings.

(2) The person in charge of any vehicle in which articles are brought for sale in the market shall, on the request of the buyer or seller of the articles, or his agent, take the vehicle with its load to the nearest weighing machine provided by the market authority in connection with the market and permit it to be weighed and, after its load has been discharged, shall, on such request as aforesaid, take it to the weighing machine so provided which is nearest to the place of discharge, and permit it to be re-weighed without its load.

(3) If the person in charge of any such vehicle as aforesaid refuses to comply with the provisions of the last preceding subsection, or refuses to assist in the weighing of the vehicle, he shall be liable to a fine not exceeding forty shillings.

Information
as to number,
weight, &c.
of animals
and articles
brought to
the market.

53. The person in charge of any vehicle in which, and any other person by whom, animals, poultry or other articles are brought for sale in the market shall give to any authorised market officer such information as to their number and kind or, in the case of articles on which

tolls are chargeable by reference to weight, as to their weight, as that officer may call for.

A.D. 1938.

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PART V.
—*cont.*

54. If an officer appointed by a market authority to attend to the weighing or measuring of articles sold in the market, or of vehicles bringing articles for sale in the market, or of animals brought for sale in the market, refuses or neglects on demand to perform his duties with respect to any such article, vehicle or animal, he shall be liable to a fine not exceeding forty shillings.

Penalty for
refusal to
weigh.

55. A person who—

- (a) commits any fraud with respect to the weighing or measuring of any article, or the weighing of any vehicle, whether loaded or unloaded, or the weighing of any animal, for the purposes of the foregoing provisions of this Part of this Act, or with respect to the recording of the weight of any article or of any vehicle or its load, or of any animal; or

Frauds in
connection
with
weighing,
or with
tolls, &c.

- (b) with intent to evade payment of the whole or a part of any toll or other charge, gives to an authorised market officer false information as to the number, kind or weight of any animals, poultry or other articles,

shall be liable to a fine not exceeding twenty pounds, or to imprisonment for a term not exceeding three months, or to both such a fine and such imprisonment.

56. Any local authority who maintain a market, whether they are a market authority within the meaning of that expression as used in this Act or not, may make byelaws for—

Power of
any local
authority
maintaining
a market
to make
market
byelaws.

- (a) regulating the use of the market place, and the buildings, stalls, pens and standings therein;
- (b) preventing nuisances or obstructions in the market place, or in the immediate approaches thereto;
- (c) regulating porters and carriers resorting to the market, and fixing the charges to be made for carrying articles therefrom within the district.

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Slaughter-houses and knackers' yards.

PART V.

—cont.

Licensing of
slaughter-
houses and
knackers'
yards.**57.—(1) It shall not be lawful—**

- (a) for the occupier of any premises to use them as a slaughter-house or knacker's yard or permit them to be so used, unless he holds a licence granted under this section by the local authority authorising him to keep those premises as a slaughter-house or, as the case may be, as a knacker's yard; or
- (b) for any person other than the occupier to use any premises as a slaughter-house or knacker's yard, unless the occupier of those premises holds in respect thereof such a licence as aforesaid :

Provided that the occupier of any premises which immediately before the commencement of this Act were registered or licensed as a slaughter-house or knacker's yard under any enactment repealed by this Act, and were then in use as such, shall be deemed to hold in respect of those premises a licence granted under this section and expiring at the expiration of four months from the commencement of this Act.

(2) A local authority on receiving from the occupier of, or a person proposing to occupy, any premises an application for the grant or renewal of a licence authorising him to keep those premises as a slaughter-house, or as a knacker's yard, may grant or renew to him a licence in respect of those premises :

Provided that the authority—

- (a) shall not grant a licence, otherwise than by way of renewal of an existing licence, until an officer of the authority has inspected the premises named in the application and has made a report thereon;
- (b) shall not refuse to grant or renew a licence in respect of premises which immediately before the commencement of this Act either were registered as a slaughter-house or, as the case may be, a knacker's yard, or were premises in respect of which a licence without limitation of time authorising their use as a

slaughter-house or, as the case may be, a knacker's yard was in operation at that date, and in either case were then in use as such, unless they are satisfied that the applicant is not a proper person to keep such a place, or that the premises named in the application are not suitable for use for the purpose in question.

A.D. 1938.

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PART V.
—*cont.*

(3) If, on an application for the grant or renewal of a licence in respect of any such premises as are mentioned in proviso (b) to the last preceding subsection, it appears to the local authority that the premises are not suitable for use as a slaughter-house or, as the case may be, a knacker's yard, then, unless they are satisfied that it is not reasonably practicable to render the premises suitable, they shall adjourn the application and serve on the applicant a notice specifying the works which, in their opinion, must be carried out in order to render the premises suitable and allowing a reasonable time, not being less than three months from the service of the notice, for the execution of those works.

A notice served under this subsection shall operate as a grant or renewal of a licence to the applicant until the expiration of one month after the expiration of the time fixed by the notice, or of any extension thereof granted by the authority.

(4) A local authority may require a person who applies for the grant or renewal of a licence under this section to give to them, before his application is considered, information as to any similar licence which he holds, or has held, either in their district or in the district of any other local authority, and, if an applicant who is so required gives to the authority any information which is false in any material respect, he shall be guilty of an offence.

(5) If a local authority refuse to grant or renew a licence under this section, they shall forthwith give notice to the applicant of their decision in the matter, and shall, if so required by him within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it was based.

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PART V.
—cont.

(6) A person aggrieved by the refusal of a local authority to grant or renew a licence under this section may appeal to a court of summary jurisdiction.

(7) A licence under this section shall remain in force for such period not exceeding thirteen months as may be fixed by the local authority, but may from time to time be renewed by them for a period not exceeding thirteen months at any one time.

(8) A person who uses any premises as a slaughter-house or knacker's yard in contravention of the provisions of this section, or permits any premises to be so used, shall be guilty of an offence.

Byelaws as
to slaughter-
houses and
knackers'
yards.

58.—(1) A local authority may make byelaws—

(a) for securing that slaughter-houses and knackers' yards are kept in a sanitary condition and are properly managed, and for preventing cruelty therein; and

(b) requiring persons licensed under this Act to keep knackers' yards to keep, and produce when required, records of animals brought into the yards and of the manner in which those animals and the different parts thereof were disposed of:

23 & 24

Geo. 5. c. 39.

(2) Nothing in the Slaughter of Animals Act, 1933, shall be construed as restricting any power to make byelaws under paragraph (a) of the preceding subsection or as rendering invalid any byelaw made under any corresponding enactment repealed by this Act.

(3) If a person convicted of an offence against any byelaws made under this section holds a licence under the last preceding section, the court may, in addition to any other penalty, cancel the licence.

Sign to be
displayed on
slaughter-
house or
knacker's
yard.

59.—(1) The occupier of a slaughter-house or knacker's yard in respect of which a licence under this Act is in force shall display in a conspicuous position on the premises a legible notice with the words "Licensed Slaughter-house" or "Licensed Knacker's Yard," as the case may be.

(2) A person who fails to comply with the provisions of this section shall be liable to a fine not exceeding forty shillings.

60.—(1) A local authority may provide public slaughter-houses : A.D. 1938.

Provided that any proposal to provide under this section a slaughter-house within the district of another local authority shall require the consent of that authority, but such consent shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Minister. PART V.
—cont.
Power of local authority to provide public slaughter-houses.

(2) A local authority by whom a public slaughter-house has been provided under this section, or under any enactment repealed by this Act, or by the Public Health Act, 1875,—

- (a) shall make byelaws for securing that the slaughter-house is kept in a sanitary condition and is properly managed and for preventing cruelty therein;
- (b) may make such charges in respect of the use of the slaughter-house as the Minister may have approved, or such less charges as they may from time to time determine;
- (c) may provide plant or apparatus for treating or disposing of waste matters and refuse resulting from the slaughtering of animals in the slaughter-house.

(3) Nothing in the three last preceding sections shall apply in relation to a public slaughter-house provided by a local authority under this, or any other, Act.

61.—(1) A local authority may with a view to reducing the number of private slaughter-houses— Elimination of private slaughter-houses.

- (a) acquire by agreement any premises within the district which are used as a slaughter-house and discontinue the use of the premises for that purpose;
- (b) agree with the persons interested in any premises within the district which are used as a slaughter-house for the discontinuance of slaughtering on those premises.

(2) Subject to the following provisions of this section, a local authority who have provided a public slaughter-house may determine that, after such date as may be fixed by their resolution, no fresh licence to keep premises

A.D. 1938. as a slaughter-house shall be granted by them under
— this Act, and that on the said date all such licences
PART V. then in force shall cease to have effect and shall not be
—cont. renewable :

Provided that the resolution shall not have effect until it has been approved by the Minister.

(3) So soon as any such resolution as aforesaid has been passed, it shall be published in one or more local newspapers circulating in the district and a copy shall be served on every person licensed under this Act to keep a slaughter-house within the district, and the Minister, before approving the resolution, shall take into consideration any representation received by him within two months after the publication of the resolution, and shall not approve the resolution unless he is satisfied that there will be slaughter-house accommodation adequate to meet the needs of the inhabitants of the district.

(4) A resolution under this section may exempt from the operation thereof any specified existing slaughter-house and may reserve power for the local authority, with the approval of the Minister, to grant for special reasons a fresh licence, and the Minister in approving a resolution may modify it by inserting such an exemption or reservation.

(5) The licence of an existing slaughter-house exempted by virtue of the last preceding subsection and a fresh licence granted by virtue thereof shall, notwithstanding anything in the foregoing provisions of this Part of this Act, be made subject to such conditions, including a condition that during a specified period a renewal of the licence shall not be refused on any ground except the unsuitability of the holder or of the premises, as the Minister in approving the resolution, or, as the case may be, in approving the grant of the fresh licence, may determine to be reasonable.

(6) The owner and the occupier of any premises in the district which at the date when the resolution of the local authority became operative were lawfully being used as a slaughter-house shall be entitled to receive compensation from the authority for any loss sustained by them by reason of it being no longer lawful to use those premises as a slaughter-house :

A.D. 1938.

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PART V.
—cont.

Provided that if a slaughter-house is structurally defective, or otherwise open to objection on sanitary grounds, the arbitrator in determining the amount of compensation shall have regard to that fact.

(7) Where under a local Act a local authority are required to pay or tender compensation in respect of slaughter-houses of any specified class the use of which is rendered unlawful by reason of the provision of a public slaughter-house by the authority, then for the purposes of that requirement a slaughter-house which immediately before the commencement of this Act was a slaughter-house of any such class shall be deemed to continue to be such a slaughter-house so long as it remains licensed under this Act.

Cold-air stores and refrigerators.

62.—(1) A local authority who have provided, or are about to provide, a public slaughter-house, or a market, may, with the approval of the Minister, provide a cold-air store or refrigerator for the storage and preservation of meat and other articles of food, and may make charges in respect of the use of any such store or refrigerator :

Establish-
ment by
local autho-
rity of cold-
air stores
and refriger-
ators.

Provided that any proposal to provide under this section a cold-air store or refrigerator within the district of another local authority shall require the consent of that authority, but such consent shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Minister.

(2) A local authority who intend to apply for the approval of the Minister under this section shall, one month at least before making the application, give notice of their intention by advertisement in one or more local newspapers circulating in their district, and, where the consent of the local authority of another district is required, in one or more local newspapers circulating in that district, and the Minister shall consider any objection to the authority's proposals which he may receive within four weeks after the publication of the advertisement from any person appearing to him to be interested, and, in the event of any such objection being received and not withdrawn, shall cause a local inquiry to be held.

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Saving.

PART V.
—*cont.*
Saving for
Port of
London
Authority
and Mersey
Docks and
Harbour
Board.

63. Nothing in this Part of this Act shall apply to any slaughter-house or knacker's yard belonging to the Port of London Authority or the Mersey Docks and Harbour Board and forming part of an imported animals' wharf or landing place approved by the Minister of Agriculture and Fisheries under the Diseases of Animals Acts, 1894 to 1937, for the purpose of the landing of imported animals.

PART VI.

GENERAL AND MISCELLANEOUS.

Administration.

"Local
authority"
and "Food
and Drugs
authority."

64. In this Act the expression "local authority" means—

- (a) as respects the City of London, the Common Council and, as respects a metropolitan borough, the council thereof;
- (b) as respects the Inner Temple and the Middle Temple, the respective overseers thereof; and
- (c) as respects any other borough and any urban district or rural district, the council of the borough or district:

23 & 24
Geo. 5. c. 51.

Provided that, in the case of a rural district with respect to which there is in force such a direction as is mentioned in subsection (2) of section forty-two of the Local Government Act, 1933, the council by whom the affairs of the district are being temporarily administered shall be deemed to be the local authority;

and the expression "Food and Drugs authority" means—

- (i) as respects the City of London, the Common Council and, as respects a metropolitan borough, the council thereof;
- (ii) as respects a county borough, and also as respects any non-county borough or urban district which has according to the last published census for the time being a population of forty thousand or upwards, the local authority; and
- (iii) as respects any other area, the county council:

Provided that—

A.D. 1938.

PART VI.
—cont.

- (a) if a county council satisfy the Minister that the area or areas in respect of which they would be the Food and Drugs authority would be rendered inconvenient in size, shape or situation for the efficient performance of their duties as the Food and Drugs authority, the Minister may direct that the county council shall be the Food and Drugs authority as respects the district or districts of any one or more of the local authorities who, but for such a direction, would be Food and Drugs authorities under this Act, but were not such authorities under the law in force immediately before the commencement thereof;
- (b) on the application of the local authority of any non-county borough or urban district which has according to the last published census for the time being a population of twenty thousand or upwards but less than forty thousand, the Minister may direct that the local authority shall, in lieu of the county council, be the Food and Drugs authority as respects their district.

65.—(1) It shall be the duty of every Food and Drugs authority within their area to carry into execution and enforce the provisions of—

Duty to
enforce
provisions
of Act.

- (a) sections one to seven of this Act (which relate to the composition of food and drugs);
- (b) section twenty-four of this Act (which relates to additions not to be made to milk and liquids not to be sold as milk);
- (c) sections twenty-seven to twenty-nine of this Act (which relate to artificial cream);
- (d) sections thirty-two to thirty-six of this Act (which relate to margarine, margarine-cheese, butter and milk-blended butter); and
- (e) any other section of this Act which they are specifically directed to enforce,

with a view to securing that food and drugs are sold only in a pure and genuine condition.

A.D. 1938.

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PART VI.
—*cont.*

(2) It shall be the duty of every local authority within their district to carry into execution and enforce the provisions of any section of this Act with respect to which the duty is not expressly, or by necessary implication, imposed on some other authority.

(3) A county council or local authority may institute proceedings under any section of, or regulation made under, this Act, notwithstanding that they are not the authority charged with the execution and enforcement thereof.

Public
analysts.

66.—(1) Every Food and Drugs authority shall appoint in accordance with the provisions of this section one or more persons (in this Act referred to as “public analysts”) to be analysts of food and drugs within their area.

(2) No person shall be appointed a public analyst unless he possesses either the prescribed qualifications or such other qualifications as the Minister may approve, and no person shall be appointed public analyst for any area who is engaged directly or indirectly in any trade or business connected with the sale of food or drugs in that area.

(3) The appointment of a public analyst and the terms of his appointment and the removal of a public analyst shall require the approval of the Minister.

(4) A Food and Drugs authority shall pay to a public analyst such remuneration as may be agreed, and such remuneration may be expressed to be payable either in addition to any fees received by him under this Part of this Act, or on condition that any fees so received by him are paid over by him to the authority.

(5) Regulations prescribing qualifications for the purposes of subsection (2) of this section shall be laid before Parliament as soon as may be after they are made.

(6) A Food and Drugs authority who appoint only one public analyst may appoint also a deputy to act during any vacancy in the office of public analyst, or during the absence or incapacity of the holder of the office.

The foregoing provisions of this section with respect to the qualifications, appointment, removal and remuneration of a public analyst shall apply also in relation to a deputy public analyst, and any reference in the subsequent sections of this Act to a public analyst shall be construed as including a reference to a deputy public analyst appointed under this section.

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PART VI.
—cont.

67. A county council or local authority may provide facilities for bacteriological and other examinations of samples of food and drugs.

Facilities for
examination
of food and
drugs.

68.—(1) An authorised officer of a Food and Drugs authority, or of a local authority not being a Food and Drugs authority, may exercise such powers of procuring samples of food and drugs for analysis, or for bacteriological or other examination, as are conferred upon him by this section, and any such officer is in this Act referred to as a “sampling officer.”

Powers of
sampling.

(2) A sampling officer may purchase samples of any food or drug :

Provided that nothing in this section shall be construed as authorising any purchase or sale of drugs in contravention of the Dangerous Drugs Acts, 1920 to 1932, or regulations made thereunder.

(3) A sampling officer may take samples of—

- (a) any butter or cheese, or substances resembling butter or cheese, exposed for sale and not marked in the manner in which margarine, milk-blended butter or margarine-cheese is required to be marked under this Act;
- (b) any food, or substance capable of being used in the preparation of food, found on premises which he has entered in the execution of his duties under this Act.

(4) A sampling officer, or an inspector of the Minister, may take samples of milk at any dairy, or at any time while it is in transit, or at the place of delivery to the purchaser, consignee or consumer.

An authorised officer of a county council who, as respects the whole or some part of their county, are not the Food and Drugs authority may exercise the like powers throughout the county or, as the case may be,

A.D. 1938. in that part thereof, and, for the purposes of the subsequent sections of this Act, such an officer shall be deemed to be a sampling officer.

PART VI.
—cont.

(5) Where milk sold or exposed for sale within the area of any council is obtained from a dairy situate outside that area, the medical officer of health or any other authorised officer of the council may by notice in writing to the medical officer of health or other authorised officer of a Food and Drugs authority within whose area the dairy is situate, or through whose area the milk passes in transit, request him to procure samples of the milk at that dairy, or while it is in transit, and it shall be the duty of an officer who receives such a notice to procure, as soon as is practicable, samples of the milk in question and to forward those samples to the officer who gave the notice, or to such person as that officer may direct, and, for the purposes of this Act, samples so procured shall be deemed to have been procured within the area for which the last-mentioned officer acts.

(6) Any power of an authorised officer in respect of procuring samples of milk may be exercised at a place outside the area of the council whose officer he is, if the Food and Drugs authority of the area within which that place is situate have consented to samples of milk being procured within their area by officers of the first-mentioned council, and, for the purposes of this Act, any samples so procured shall be deemed to have been procured within the area for which the officer in question acts.

A Food and Drugs authority shall not unreasonably withhold consent for the purposes of this subsection and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Minister.

(7) A sampling officer may, at the request or with the consent of the purchaser, consignee or consumer, take at the place of delivery samples of any food delivered, or about to be delivered, to the purchaser, consignee or consumer in pursuance of a contract for the sale thereof to him :

Provided that this subsection shall not apply in relation to milk.

(8) If a sampling officer has reason to believe that any container forwarded by a public conveyance contains margarine, margarine-cheese or milk-blended butter which is not consigned in accordance with the provisions of this Act, he may examine and take samples of the contents of that container.

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PART VI.

—cont.

(9) In the exercise on any railway premises of the powers conferred upon him by this section in relation to the taking of samples of milk in course of transit, an officer shall conform to such reasonable requirements of the railway company as are necessary to prevent the working of the traffic of the company being obstructed or interfered with.

69.—(1) If a sampling officer who has procured a sample of any food or drug considers that it should be analysed, he shall submit it to be analysed by the public analyst for the area in which the sample was, or is deemed to have been, procured.

Right to
have
samples
analysed.

(2) A person, other than a sampling officer, who has purchased any food or drug may submit a sample of it to be analysed by the public analyst for the area in which the purchase was made.

(3) The public analyst shall analyse as soon as practicable any sample sent to him in pursuance of this section, and give to the person by whom it was submitted a certificate in the prescribed form specifying the result of the analysis :

Provided that, in the case of a sample submitted by a person not being an officer of the Food and Drugs authority, the analyst may demand in advance such fee, not exceeding one guinea, as may be fixed by that authority.

In giving his certificate, the analyst shall have regard to the provisions of any regulation made under section twenty-three of this Act.

(4) If the office of public analyst for the area in question is vacant, the sample shall be submitted to the public analyst for some other area and, upon payment to him of such sum as may be agreed, he shall analyse it and give to the person by whom it was submitted such a certificate as aforesaid.

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PART VI.
—*cont.*Division
of, and
dealings
with,
samples.

70.—(1) A person purchasing a sample of any food or drug with the intention of submitting it to be analysed by a public analyst, or taking a sample of food on any premises with the intention of submitting it to be so analysed, shall, after the purchase has been completed or the sample has been taken, forthwith inform the seller or his agent who sold the sample, or, as the case may be, the occupier of the premises or the person for the time being in charge thereof, of his intention to have the sample analysed by the public analyst, and shall then and there divide it into three parts, each part to be marked, and sealed or fastened up, in such manner as its nature will permit, and shall—

- (a) if required so to do, deliver one part to the seller or his agent, or, as the case may be, to the occupier of the premises or the person for the time being in charge thereof;
- (b) retain one part for future comparison; and
- (c) if he thinks fit to have an analysis made, submit one part to the public analyst:

Provided that, in relation to samples taken in such circumstances as are mentioned in either of the two next succeeding subsections, the foregoing provisions with respect to the giving of information and the manner of dealing with samples shall have effect as modified by those subsections.

(2) A person taking a sample of any food while it is in transit, or at the place of delivery to the purchaser, consignee or consumer shall, if he intends to submit it to be analysed by a public analyst, deal with it in the manner provided by the preceding subsection, except that he shall retain the first-mentioned part of the sample unless the name and address of the consignor appear on the container containing the article sampled, in which case he shall forward that part of the sample to the consignor by registered post or otherwise, together with a notice informing that person that he intends to have part of the sample analysed by the public analyst.

(3) A person purchasing a sample of any food or drug from an automatic machine shall, if he intends to submit it to be analysed by a public analyst, deal with it in the manner provided by subsection (1) of

this section, except that he shall send the first mentioned part of the sample by registered post or otherwise, together with such a notice as aforesaid—

- (a) if the name and address of a person stated to be the proprietor of the machine appear thereon, to that person; and
- (b) in any other case, to the occupier of the premises on which the machine stands or to which it is affixed.

71.—(1) The provisions of this Act relating to the procuring of samples by sampling officers, and proceedings in connection therewith, shall, in relation to milk, have effect subject to the provisions of the Third Schedule to this Act.

(2) It shall be a defence for a defendant charged with any offence under this Act, or under Milk and Dairies Regulations or Food Regulations, in respect of a sample of milk taken after the milk has left his possession, to prove that the churn or other vessel in which the milk was contained was effectively closed and sealed at the time when it left his possession, but had been opened before the person by whom the sample was taken had access to it.

(3) So much of any contract as requires a purveyor of milk, on a sample of milk being procured under this Act, to send to the person from whom he obtained the milk any part of such sample, or to give to that person notice that a sample has been so procured, shall be void.

72.—(1) The Minister, in relation to any matter appearing to him to affect the general interests of consumers, and the Minister of Agriculture and Fisheries, in relation to any matter appearing to him to affect the general interests of agriculture in the United Kingdom, may direct an officer of his department to procure samples of any specified food, and thereupon the officer shall have all the powers of a sampling officer, and this Act shall apply as if he were a sampling officer, except that—

- (a) if he intends to submit any sample procured by him to be analysed, he shall divide it into four parts, and shall deal with three of those parts in the manner directed by the last but

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PART VI.
—cont.

Special provisions as to the sampling of milk and proceedings subsequent thereto.

Power of Ministers of Health and Agriculture to have foods analysed and examined.

A.D. 1938.

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PART VI.
—cont.

one foregoing section, and send the fourth part to the Minister concerned; and

- (b) any fee for analysis shall be payable to the analyst by the Food and Drugs authority of the area in which the sample is procured.

(2) The Minister concerned shall communicate the result of the analysis of any such sample to the Food and Drugs authority and, thereupon, they shall have the like duty to cause proceedings to be taken as if one of their officers had procured the sample and sent it to be analysed.

Powers of
Minister of
Agriculture
as to
inspection
of premises
where
margarine,
milk-
blended
butter, &c.,
produced or
subjected to
treatment.

73.—(1) An officer of the Minister of Agriculture and Fisheries shall, on producing, if so required, some duly authenticated document showing his authority, have power to enter at all reasonable times any premises registered under section thirty-four of this Act, and to inspect any process of manufacture, blending, reworking, or treatment carried on therein, and to take samples of any butter, margarine, margarine-cheese, or milk-blended butter, or of any substance capable of being used in the manufacture, treatment or adulteration of any of those articles.

(2) If the Minister of Agriculture and Fisheries has reason to believe—

- (a) that any process of manufacture, blending, reworking, or treatment, or any wholesale dealing, being a process or dealing which under this Act may not be carried on except on registered premises, is being carried on on any premises not registered for the purpose in question; or

- (b) that on any premises butter is by way of trade either made or stored, and that for the purposes of this Act inspection is desirable,

he may specially authorise any of his officers to enter the premises, and in that case the officer shall have the like powers of entry, inspection, and sampling as if the premises were registered.

Quarterly
reports by
analysts.

74.—(1) Every public analyst shall, as soon as may be after the last day of March, the last day of June, the last day of September and the last day of December in every year, report to the authority by whom he was

appointed the number of articles which have been analysed by him under this Act in his capacity of public analyst for their area during the preceding quarter of a year and the result of each analysis.

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PART VI.

—cont.

(2) Every Food and Drugs authority shall transmit to the Minister, at such time as he may direct, a copy of each quarterly report received by them from a public analyst.

75.—(1) Expenses incurred under this Act by the Common Council of the City of London, or by the council of a metropolitan borough, shall be defrayed out of the general rate.

Expenses.

(2) Expenses incurred under this Act by the London County Council shall be defrayed as expenses for general county purposes.

(3) Expenses incurred by a county council as a Food and Drugs authority shall, if the council are not the Food and Drugs authority for the whole county, be defrayed as expenses for special county purposes charged on those county districts the councils of which are not Food and Drugs authorities.

(4) Expenses incurred under this Act by a sampling officer in procuring samples and causing samples to be analysed shall be defrayed by the authority whose officer he is :

Provided that expenses incurred by an officer in complying with a notice given to him under subsection (5) of section sixty-eight of this Act shall be borne by the authority whose officer gave the notice, and any dispute as to the amount of any such expenses shall be referred to and determined by the Minister.

(5) A county council may, as part of their expenses as a Food and Drugs authority, make a contribution towards any expenses incurred by the council of a county district within the county, not being a Food and Drugs authority, in connection with the procuring and analysis or examination of samples and the institution of proceedings under this Act.

76.—(1) Orders made by the Minister under section three, section six or section eight, as the case may be, of the Public Health Act, 1936, may—

Provisions
as to port
health
authorities
and joint
boards.

(a) assign to a port health authority any of the functions, rights and liabilities of a local

A.D. 1938.

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PART VI.
—cont.

authority or Food and Drugs authority under this Act;

- (b) constitute a united district for the purposes of any functions under this Act which are functions of a local authority, whether as a Food and Drugs authority or otherwise; or
- (c) empower councils of counties and county boroughs to discharge through a joint board any of their functions, in whatever capacity, under this Act,

and amending orders may be made by the Minister accordingly under section nine of the said Act.

For the purposes of section three hundred and eleven of the said Act, as incorporated in this Act, orders made under that Act by virtue of this subsection shall be deemed to be made under this Act.

(2) The functions, rights and liabilities which the Minister may by an order under subsection (1) of section six of the Public Health (London) Act, 1936, vest in or impose on the port health authority of the port of London shall include any functions, rights and liabilities of a local authority or Food and Drugs authority under this Act, and the provisions and byelaws which any such order may extend as mentioned in subsection (3) of the said section shall include any of the provisions of this Act which it is the function of a local authority or Food and Drugs authority to carry into effect and any byelaws made under any of those provisions, and any order previously made under the said section six may be amended accordingly.

For the purposes of this subsection, the making of byelaws under section fifteen of this Act shall, notwithstanding anything in the proviso to subsection (1) of that section, be deemed to be a function of a local authority.

Entry, obstruction, &c.

Power to
enter
premises.

77.—(1) Subject to the provisions of this section, any authorised officer of a council shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter any premises at all reasonable hours—

- (a) for the purpose of ascertaining whether there is or has been on, or in connection with, the premises any contravention of the provisions of this Act or of any regulations or byelaws made

thereunder, being provisions which the council are required or empowered to enforce; and

- (b) generally for the purpose of the performance by the council of their functions under this Act or any such regulations or byelaws :

Provided that admission to any premises used only as a private dwelling-house shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing—

- (a) that admission to any premises has been refused, or that refusal is apprehended, or that the premises are unoccupied or the occupier is temporarily absent, or that the case is one of urgency, or that an application for admission would defeat the object of the entry; and

- (b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid,

the justice may by warrant under his hand authorise the council by any authorised officer to enter the premises, if need be by force, and, where the justice is satisfied that there is reasonable ground for supposing that the premises in question are unregistered premises used for the manufacture of artificial cream contrary to the provisions of this Act, the warrant may also authorise a search for and the seizure of any machine suitable for use in the manufacture of artificial cream :

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier, or that the premises are unoccupied or that the occupier is temporarily absent, or that the case is one of urgency, or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer entering any premises by virtue of this section, or of a warrant issued thereunder, may take with him such other persons as may be necessary, and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectively secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force for a period of one month.

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PART VI.
—cont.

A.D. 1938.

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PART VI.
—*cont.*

(5) If any person who, in compliance with the provisions of this section, or of a warrant issued thereunder, is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret, he shall, unless such disclosure was made in the performance of his duty, be liable to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months.

(6) Nothing in this section shall authorise any person, except with the permission of the local authority under the Diseases of Animals Acts, 1894 to 1937, to enter any cowshed or other place in which an animal affected with any disease to which those Acts apply is kept and which is situated in a place declared under those Acts to be infected with such a disease.

(7) In the exercise on any railway premises of the powers conferred upon him by this section, an officer shall conform to such reasonable requirements of the railway company as are necessary to prevent the working of the traffic of the company being obstructed or interfered with.

Penalty for
obstructing
execution
of Act.

78.—(1) A person who wilfully obstructs any person acting in the execution of this Act or of any regulation, byelaw, order or warrant made or issued thereunder, shall be liable to a fine not exceeding five pounds:

Provided that, if the court is satisfied that he committed the offence with intent to prevent the discovery of some other offence under this Act, or if he has within the twelve months last preceding been convicted of an offence under this subsection, he shall be liable to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding one month.

(2) If a sampling officer applies to purchase any food or drug exposed for sale, or on sale by retail, and tenders the price for the quantity which he requires as a sample, and the person exposing the food or drug for sale, or having it for sale, refuses to sell to the officer such quantity thereof as aforesaid, or if the seller or consignor, or any person having for the time being the charge, of any food of which an officer is empowered to take a sample refuses to allow the officer to take the quantity which he requires as a sample, the person so refusing

shall, for the purposes of the preceding subsection, be deemed to have wilfully obstructed the officer : A.D. 1938.

Provided that, where any food or drug is exposed for sale in an unopened container duly labelled, no person shall be required to sell it except in the unopened container in which it is contained.

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PART VI.
—cont.

(3) A person who fails to give to any person acting in the execution of this Act or of any regulation, byelaw, order or warrant made or issued thereunder, any assistance which that person may reasonably request him to give, or any information which that person is expressly authorised by this Act to call for or may reasonably require, or who, when required to give any such information, knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding five pounds :

Provided that nothing in this section shall be construed as requiring a person to answer any question or give any information, if to do so might incriminate him.

Legal Proceedings.

79. A person guilty of an offence under this Act shall, unless a special penalty for that offence is provided by this Act, be liable in the case of a first offence, to a fine not exceeding twenty pounds and, in the case of a subsequent offence, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such a fine and such imprisonment. Penalties.

80.—(1) Subject to the provisions of this Act, all offences under this Act and regulations and byelaws made thereunder may be prosecuted under the Summary Jurisdiction Acts : Prosecu-
tions.

Provided that—

- (a) where a sample has been procured under this Act, no prosecution in respect of the article sampled shall be commenced after the expiration of twenty-eight days from the time when the sample was procured unless the justice of the peace before whom the information is laid, on being satisfied on oath that having regard to the circumstances of the particular case it was not practicable to lay the information at an earlier date, gives a certificate to that effect, and in no case shall the

A.D. 1938.

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PART VI.
—cont.

prosecution be commenced after the expiration of forty-two days from the said time;

- (b) the time within which proceedings may be commenced under section eighty-five of this Act in respect of the giving of a false warranty shall be twelve months instead of six months.

(2) Subject as hereinafter provided, where a sample has been procured under this Act, any proceedings in respect of the article sampled shall be taken before a court having jurisdiction in the place where the sample was procured :

Provided that—

- (a) where a sample procured within one area is for the purposes of this Act deemed to have been procured within another area, proceedings may, at the option of the prosecutor, be taken either before a court having jurisdiction within the area within which the sample was procured, or before a court having jurisdiction within the area within which it is deemed to have been procured; and
- (b) where the article sampled was sold and actually delivered to the purchaser, proceedings may, if the prosecutor so elects, be taken before a court having jurisdiction at the place of delivery.

(3) In any proceedings under this Act in respect of an article sampled, the summons shall not be made returnable less than fourteen days from the day on which it is served, and a copy of any certificate of analysis obtained on behalf of the prosecutor, and of any certificate given by a justice under proviso (a) to subsection (1) of this section, shall be served with the summons.

(4) In any proceedings under this Act, where a sample has been procured in such circumstances that its division into parts is required by this Act, the part of the sample retained by the person who procured it shall be produced at the hearing.

Evidence of
certificates
of analysis,
and pre-
sumptions.

81.—(1) In any proceedings under this Act, the production by one of the parties of a document purporting to be a certificate of a public analyst in the prescribed form, or of a document supplied to him by

the other party as being a copy of such a certificate, shall be sufficient evidence of the facts stated therein, unless, in the first-mentioned case, the other party requires that the analyst shall be called as a witness.

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PART VI.
—cont.

(2) In any such proceedings, if a sample of milk has been taken by an officer of one authority at the request of an officer of another authority, a document purporting to be a certificate signed by the officer who took the sample and stating that the provisions of this Act with respect to the manner in which samples are to be dealt with were complied with shall, if a copy thereof has been served on the defendant with the summons, be sufficient evidence of compliance with those provisions, unless the defendant requires that the officer shall be called as a witness.

(3) In any such proceedings, if a defendant intends to produce a certificate of a public analyst, or under subsection (1) of this section, to require that the public analyst shall be called as a witness, or under the last preceding subsection to require that a sampling officer shall be called as a witness, notice of his intention together, in the first-mentioned case, with a copy of the certificate shall be given to the other party at least three clear days before the day on which the summons is returnable, and, if this requirement is not complied with, the court may, if it thinks fit, adjourn the hearing on such terms as it deems proper.

(4) For the purposes of this Act and of any regulations made thereunder—

(a) articles commonly used for human consumption shall, if sold or offered, exposed or kept for sale, be presumed, until the contrary is proved, to have been sold, or, as the case may be, to have been or to be intended for sale, for human consumption;

(b) any article commonly used for human consumption which is found on premises used for the preparation, storage, or sale of that article and any article commonly used in the manufacture of products for human consumption which is found on premises used for the preparation, storage or sale of those products, shall be presumed, until the contrary is proved,

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PART VI.
—cont.

to be intended for sale, or for manufacturing products for sale, for human consumption;

- (c) any substance capable of being used in the composition or preparation of any article commonly used for human consumption which is found on premises on which that article is prepared, shall, until the contrary is proved, be presumed to be intended for such use.

Power of
court to
require
analysis by
Government
Chemist.

82.—(1) The court before which any proceedings are taken under this Act may, if it thinks fit, and upon the request of either party shall, cause the part of any sample produced before the court under subsection (4) of the last but one preceding section to be sent to the Government Chemist, who shall make an analysis, and transmit to the court a certificate of the result thereof, and the costs of the analysis shall be paid by the prosecutor or the defendant as the court may order.

(2) If, in a case where an appeal is brought, no action has been taken under the preceding subsection, the provisions thereof shall apply also in relation to the court by which the appeal is heard.

Defence
available to
defendant
where some
other person
is re-
sponsible
for the
commission
of the
offence
charged.

83.—(1) A person against whom proceedings are brought under this Act shall, upon information duly laid by him and on giving to the prosecution not less than three clear days' notice of his intention, be entitled to have any person to whose act or default he alleges that the contravention of the provisions in question was due brought before the court in the proceedings, and, if, after the contravention has been proved, the original defendant proves that the contravention was due to the act or default of that other person, that other person may be convicted of the offence, and, if the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with, he shall be acquitted of the offence.

(2) Where a defendant seeks to avail himself of the provisions of the preceding subsection—

- (a) the prosecution, as well as the person whom the defendant charges with the offence, shall have the right to cross-examine him, if he gives evidence, and any witness called by him in support of his pleas, and to call rebutting evidence;

- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

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PART VI.

—cont.

(3) Where it appears to the authority concerned that an offence has been committed in respect of which proceedings might be taken under this Act against some person and the authority are reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the first-mentioned person could establish a defence under subsection (1) of this section, they may cause proceedings to be taken against that other person without first causing proceedings to be taken against the first-mentioned person.

In any such proceedings the defendant may be charged with and, on proof that the contravention was due to his act or default, be convicted of, the offence with which the first-mentioned person might have been charged.

84.—(1) Subject to the provisions of this section, in the case of any prosecution under Part I, Part II or Part III of this Act in respect of selling, exposing or offering for sale, or having in possession for sale, an article which was not of a nature, substance or quality entitling a person to sell or otherwise deal with it under the description or in the manner under, or in, which the defendant dealt with it, it shall be a defence for the defendant to prove—

Conditions
under which
a warranty
may be
pleaded as
defence.

- (a) that he purchased it as being an article of such a nature, substance and quality as would have so entitled him and with a written warranty to that effect; and

- (b) that he had no reason to believe at the time of the commission of the alleged offence that it was otherwise; and

- (c) that it was then in the same state as when he purchased it.

(2) A warranty shall only be a defence to proceedings under this Act if—

- (a) the defendant has within seven days of the service of the summons sent to the prosecutor a copy of the warranty with a notice stating that he intends to rely on it and specifying the

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PART VI.
—cont.

name and address of the person from whom he received it, and has also sent a like notice of his intention to that person; and

(b) in the case of a warranty given by a person resident outside the United Kingdom, the defendant proves that he had taken reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained therein; and

(c) in the case of a prosecution in respect of a sample of milk, the defendant has within sixty hours after the sample was procured served such a notice as is mentioned in paragraph (2) of the Third Schedule to this Act.

(3) Where the defendant is a servant of the person who purchased the article under a warranty, he shall be entitled to rely on the provisions of this section in the same way as his employer would have been entitled to do if he had been the defendant.

(4) The person by whom the warranty is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(5) For the purposes of this and the next succeeding section, a name or description entered in an invoice shall be deemed to be a written warranty that the food or drug to which the entry refers is of such a nature, substance and quality that a person can sell, or otherwise deal with it, under that name or description without contravening any of the provisions of this Act or of regulations made thereunder.

Offences in
relation to
warranties
and certifi-
cates of
analysis.

85.—(1) A defendant who in any proceedings under this Act wilfully applies to any food or drug a warranty or certificate of analysis given in relation to any other food or drug shall be guilty of an offence.

(2) A person who, in respect of any food or drug sold by him, gives to the purchaser a false warranty in writing, shall be guilty of an offence, unless he proves that when he gave the warranty he had reason to believe that the statements or description contained therein were accurate.

(3) Where the defendant in a prosecution under this Act relies successfully on a warranty given to him or to his employer, any proceedings under the last preceding subsection in respect of the warranty may, at the option of the prosecutor, be taken either before a court having jurisdiction in the place where a sample of the food or drug to which the warranty relates was procured, or before a court having jurisdiction in the place where the warranty was given.

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PART VI.
—cont.*Compensation.*

86. Where by any of the foregoing provisions of this Act provision is made for the payment of compensation to any person, any dispute arising as to the fact of damage or loss, or as to the amount of compensation, shall be determined by arbitration under this Act :

Disputes as
to compen-
sation.

Provided that, if the compensation claimed does not exceed fifty pounds, all questions as to the fact of damage or loss, liability to pay compensation and the amount of compensation may on the application of either party be determined by, and any compensation awarded may be recovered before, a court of summary jurisdiction.

Appeals.

87.—(1) Where any enactment in, or regulation made under, this Act provides for an appeal to a court of summary jurisdiction against a refusal or other decision of an authority, the procedure shall be by way of complaint for an order, and the Summary Jurisdiction Acts shall apply to the proceedings.

Appeals to
courts of
summary
jurisdiction
against
decisions of
authorities.

(2) The time within which such an appeal may be brought shall be twenty-one days from the date on which notice of the authority's refusal or other decision was served upon the person desiring to appeal, and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(3) In any case where such an appeal lies, the document notifying to the person concerned the decision of the authority in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought.

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PART VI.—*cont.*

Appeals to
quarter ses-
sions against
decisions of
courts of
summary
jurisdiction.

Effect of
decision of
court upon
an appeal.

Right to
carry on
business in
certain cases
while appeal
is pending.

88. Where a person aggrieved by an order, determination or other decision of a court of summary jurisdiction under this Act, or under any regulation made under this Act, is not by any other enactment authorised to appeal to a court of quarter sessions, he may appeal to such a court.

89. Where upon an appeal under this Act a court varies or reverses any decision of an authority, it shall be the duty of the authority to give effect to the order of the court, and, in particular, to grant any necessary licence and to make any necessary entry in any register.

90.—(1) Where a decision of an authority under this Act refusing, cancelling, suspending or revoking, registration or a licence, or a decision of a court of summary jurisdiction on appeal against such a decision, makes it unlawful for a person to carry on any business which he, or his immediate predecessor in the business, was lawfully carrying on at the date when the decision of the authority was given, or to use any premises for any purpose for which he, or his immediate predecessor in the business was lawfully using them at the said date, he may carry on that business and use those premises for that purpose until the time for appealing has expired and, if an appeal is lodged, until the appeal is finally disposed of or abandoned, or has failed for want of prosecution.

(2) The foregoing provisions with respect to the right to continue to carry on a business and to use premises shall apply also where the decision of a court in proceedings in respect of an offence under this Act makes it unlawful for a person to carry on a business which he was lawfully carrying on immediately before the decision was given, or to use any premises for any purpose for which he was then lawfully using them.

Miscellaneous.

Byelaws.

91.—(1) The Minister shall be the confirming authority as respects byelaws made under this Act.

(2) Section two hundred and seventy-seven of the Public Health (London) Act, 1936, so far as it relates to byelaws made under that Act by the Common Council of the City of London and the port health authority of the port of London shall, with any necessary adaptation,

apply in relation to byelaws made under this Act by the Common Council or, by virtue of an order of the Minister under section seventy-six of this Act, by the port health authority.

A.D. 1938.

—
PART VI.
—cont.

92.—(1) This section applies to all Food Regulations, Milk and Dairies Regulations and Bread and Flour Regulations made under this Act.

Supple-
mentary
provisions
as to certain
regulations.

(2) Without prejudice to the generality of the provisions under which they are made, the regulations may—

- (a) provide for the taking and examination of samples;
- (b) apply, as respects matters to be dealt with by the regulations, any provision in any Act (including this Act) dealing with the like matters, with the necessary modifications and adaptations;
- (c) provide for an appeal to a court of summary jurisdiction against any refusal or other decision of an authority by whom the regulations are to be enforced and executed;
- (d) authorise the making of charges for the purposes of the regulations or for any services performed thereunder, and provide for the recovery of charges so made;
- (e) contain provisions for imposing on persons offending against the regulations penalties not exceeding the maximum penalties specified in section seventy-nine of this Act;
- (f) make such ancillary and incidental provisions as appear to the Minister to be necessary or desirable.

(3) The regulations shall specify the authorities, whether county councils, local authorities, Food and Drugs authorities or port health authorities, by whom they are to be enforced and executed, and may provide for the giving of assistance and information by any authority concerned in the administration of the regulations, or of this Act, to any other authority so concerned for the purposes of their respective duties thereunder.

(4) Before making the regulations, the Minister shall consult with such representative organisations as he thinks fit.

A.D. 1938. (5) The regulations shall be laid before Parliament
— as soon as may be after they are made.

PART VI.
—cont.

(6) Any expenses incurred by a county council in the enforcement and execution of the regulations shall, if the Minister by order so directs, be defrayed as expenses for special county purposes charged on such part of the county as may be provided by the order, but any such order may be revoked or varied by a subsequent order.

Default of
Food and
Drugs
authority.

93.—(1) If the Minister or the Minister of Agriculture and Fisheries, after communication with a Food and Drugs authority, is of opinion that the authority have failed in relation to any kind of food to execute or enforce any of the provisions of this Act which it is their duty to execute or enforce, and that their failure affects the general interests of consumers, or the general interests of agriculture in the United Kingdom, as the case may be, the Minister concerned may by order empower an officer of his department to execute and enforce, or procure the execution and enforcement of, those provisions in relation to food of that kind.

(2) Expenses incurred under any such order by either of the said Ministers or his officer shall be paid in the first instance out of moneys provided by Parliament, but the amount of those expenses as certified by the Minister concerned shall, on demand, be paid to him by the Food and Drugs authority and shall be recoverable by him from them as a debt due to the Crown, and the authority shall have the like power of raising the money required as they have of raising money for defraying expenses incurred directly by them as a Food and Drugs authority.

(3) Nothing in this section affects any other power exercisable by the Minister or a county council with respect to defaults of local authorities.

Protection
for officers
of local
authority
or county
council
acting in the

94.—(1) An officer of a local authority shall not be personally liable in respect of any act done by him in the execution or purported execution of this Act and within the scope of his employment, if he did that act in the honest belief that his duty under this Act required or entitled him to do it :

Provided that nothing in this subsection shall be construed as relieving a local authority from any liability in respect of acts of their officers.

A.D. 1938.

PART VI.

—cont.

execution of
their duty.

(2) Where an action has been brought against an officer of a local authority in respect of an act done by him in the execution or purported execution of this Act and the circumstances are such that he is not legally entitled to require the authority to indemnify him, the authority may, nevertheless, indemnify him against the whole or a part of any damages and costs which he may have been ordered to pay or may have incurred, if they are satisfied that he honestly believed that the act complained of was within the scope of his employment and that his duty under this Act required or entitled him to do it.

(3) The provisions of this section shall apply in relation to a county council and the officers thereof as they apply in relation to a local authority and the officers thereof.

95.—(1) If, in consequence of a local authority ceasing, as respects the whole or any part of their area, to be a Food and Drugs authority, either upon the commencement of this Act or at any subsequent date, or in consequence of any such vesting of functions as is mentioned in subsection (2) of section seventy-six of this Act or any transfer or relinquishment of functions under any of the provisions of the Public Health Act, 1936, which are incorporated in this Act, the appointment of any officer of a local authority is determined or his emoluments are diminished, the provisions of subsections (2) to (4) and (6) of section one hundred and fifty of, and the Fourth Schedule to, the Local Government Act, 1933, shall apply in relation to him—

Provision
for compen-
sation in
certain
cases to
officers of
local autho-
rities and
county
councils.

- (a) as if the cesser, vesting, transfer or relinquishment had taken effect by virtue of an order made by the Minister under Part VI of the said Act of 1933 and coming into operation upon the commencement of this Act or, as the case may be, upon the date on which the cesser, vesting, transfer or relinquishment took effect; and
- (b) as if the said order provided that any officer who by virtue or in consequence of the order might suffer any direct pecuniary loss by reason

A.D. 1938.

PART VI.
—cont.

of the determination of his appointment or the diminution of his emoluments, and for whose compensation for that loss no other provision was made by or under any enactment for the time being in force, should be entitled to receive compensation from such authority, or from such authorities and in such proportions, as the Minister might determine.

(2) The provisions of this section shall apply in relation to a county council and the officers thereof as they apply in relation to a local authority and the officers thereof.

(3) For the purposes of this section, a public analyst shall be deemed to be an officer of the authority by whom he was appointed.

Incorporation of certain provisions of the Public Health Act, 1936.

96.—(1) The following provisions of the Public Health Act, 1936, shall be deemed to be incorporated in this Act, that is to say :—

- Section 271 (Interpretation of “provide”);
- Section 272 (Power of councils to combine for purposes of Act);
- Section 273 (Provisions as to sub-committees);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 283 (Notices to be in writing; form of notices, &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices, &c.);
- Section 286 (Proof of resolutions, &c.);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 303 (Mode of reference to arbitration);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 306 (Compulsory purchase of land by means of provisional order);
- Section 311 (Loans by Public Works Loan Commissioners);
- Section 313 (Orders for amendment or adaptation of local Acts);

Section 317 (Amendment of 38 & 39 Vict. c. 55, A.D. 1938.
s. 303);

Section 318 (Local inquiries);

Section 319 (Provisions as to regulations required
to be laid before Parliament);

Sections 320 to 325 (Relinquishment and transfer
of powers and duties of councils);

Section 328 (Powers of Act to be cumulative);

Section 345 (Transitional provisions as to offences
and notices).

PART VI.
—cont.

(2) For the purposes of the application of the pre-
ceding subsection to London—

(a) as respects section three hundred and six of the
Public Health Act, 1936, the provisions of the
Local Government Act, 1933, relating to the
compulsory acquisition of land by means of a
provisional order shall, for the purposes of this
Act, be deemed to extend to London and shall
have effect as if any reference therein to a local
authority were a reference to a local authority
as defined by this Act;

(b) as respects section three hundred and eighteen of
the Public Health Act, 1936, the provisions of
section two hundred and ninety-seven of the
Public Health (London) Act, 1936, shall apply
in relation to any inquiry held by the Minister
under this Act in London.

97. Where a person who holds a licence, or is
registered in respect of any premises, under this Act or
any regulations made thereunder dies, the licence or
registration shall, unless previously revoked or cancelled,
enure for the benefit of his widow, or any other member of
his family, until the expiration of two months from his
death, or until the expiration of such longer period as the
licensing or registering authority may allow.

Temporary
continuance
of licence
or regis-
tration on
death of
person
licensed or
registered.

98. Sections five and fourteen of the Bread Act, 1836, which relate respectively to the use by bakers of
avoirdupois weight and to baking on Sunday, and
sections five and sixteen of the local Act chapter cvi of the
third year of the reign of King George the Fourth, being
the corresponding enactments in force in London, shall
cease to have effect.

6 & 7 Will. 4.
c. 37, ss. 5,
14 and
3 Geo. 4.
c. cvi, ss. 5,
16 to
cease to
have effect.

A.D. 1938.

PART VI.

—cont.

Saving for
markets of
Woolwich
Borough
Council.

99. No repeal effected by this Act shall affect any rights, duties or privileges vested in, or imposed on, the council of the metropolitan borough of Woolwich in relation to their markets.

Interpretation, repeals, &c.

Definitions.

100.—(1) In this Act, unless the context otherwise requires—

“ animal ” does not include bird ;

“ area ” in relation to a county council and to officers of such a council means, as the case may require, either the county or that part of the county for which the council are the Food and Drugs authority and, in relation to a local authority and to officers of such an authority, means their district ;

“ article,” in relation to food, does not include a live animal or bird, but save as aforesaid includes in the case of an animal, bird or fish the whole or any part thereof ;

“ artificial cream ” means an article of food which, though not cream, resembles cream and contains no ingredient which is not derived from milk except water or any substance which may lawfully be contained in an article sold as cream, being some substance not injurious to health which in the case of cream may be required for its production or preparation as an article of commerce in a state fit for carriage or consumption and which has not been added fraudulently to increase bulk, weight or measure or conceal inferior quality ;

“ authorised market officer ” means an officer of a market authority specially authorised by them to collect tolls, stallages and other charges in their market ;

“ authorised officer ” means, as respects any council, an officer of the council authorised by them in writing, either generally or specially, to act in matters of any specified kind or in any specified matter and, for the purposes of the provisions

of this Act relating to the taking of samples, includes a police constable so authorised with the approval of the police authority concerned :

A.D. 1938.

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PART VI.
—cont.

Provided that—

- (a) the medical officer of health and sanitary inspector of a council shall by virtue of their appointments be deemed to be authorised officers for all the purposes of this Act ;
- (b) any member of the Royal College of Veterinary Surgeons employed by the council for the purpose of the inspection of food shall be deemed to be an authorised officer for the purpose of the examination and seizure of meat under the provisions of this Act relating to unsound food ;
- (c) no officer of a council other than the medical officer of health, a sanitary inspector or a member of the Royal College of Veterinary Surgeons employed as aforesaid shall be authorised to act in relation to the examination and seizure of meat ;

“ Bread and Flour Regulations ” has the meaning assigned to it by section thirty of this Act ;

“ butter ” means the substance usually known as butter, made exclusively from milk with or without salt or other preservative, and with or without the addition of colouring matter ;

“ cheese ” means the substance usually known as cheese, containing no fat other than fat derived from milk ;

“ container ” includes a package or receptacle of any kind, whether open or closed ;

“ county ” means an administrative county ;

“ county district ” means a non-county borough, urban district or rural district ;

“ cream ” means that part of milk rich in fat which has been separated by skimming or otherwise ;

A.D. 1938.

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PART VI.
—cont.

“dairy” includes any farm, cowshed, milk store, milk shop, or other premises from which milk is supplied on or for sale, or in which milk is kept or used for purposes of sale or of manufacture into butter, cheese, dried milk or condensed milk for sale, or in which vessels used for the sale of milk are kept, but does not include a shop from which milk is supplied only in the properly closed and unopened vessels in which it is delivered to the shop, or a shop or other place in which milk is sold for consumption on the premises only;

“dairyman” includes an occupier of a dairy, a cowkeeper, and a purveyor of milk;

“district,” in relation to the local authority of a borough, or any local authority in London, and in relation to the officers of such an authority, means the borough or other area for which the authority acts;

“drug” includes medicine for internal or external use;

“food” means any article used as food or drink for human consumption, other than drugs or water, and includes—

(a) any substance which is intended for use in the composition or preparation of food;

(b) any flavouring matter or condiment; and

(c) any colouring matter intended for use in food:

provided that, notwithstanding anything in this definition, the addition of any colouring or flavouring matter or condiment to an article used as food or drink shall be deemed to be the addition of a substance to food;

“Food and Drugs authority” has the meaning assigned to it by section sixty-four of this Act;

“Food Regulations” has the meaning assigned to it by section eight of this Act;

“functions” includes powers and duties;

A.D. 1938.

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PART VI.
—cont.

- “ice-cream” includes any similar commodity;
- “importer,” in relation to an imported article, includes any person who, whether as owner, consignor, consignee, agent or broker, is in possession of, or in any way entitled to the custody or control of, the article;
- “knacker’s yard” means any premises used in connection with the business of slaughtering, flaying or cutting up animals, the flesh of which is not intended for human consumption;
- “local authority” has the meaning assigned to it by section sixty-four of this Act;
- “London” means the administrative county of London;
- “margarine” means any food, whether mixed with butter or not, which resembles butter and is not milk-blended butter;
- “margarine-cheese” means any substance prepared in imitation of cheese and containing fat not derived from milk;
- “market authority” has the meaning assigned to it by section forty-four of this Act;
- “Milk and Dairies Regulations” has the meaning assigned to it by section twenty of this Act;
- “milk-blended butter” means any mixture produced by mixing or blending butter with milk;
- “Minister” means Minister of Health;
- “officer” includes servant;
- “premises” includes messuages, buildings, land, easements and hereditaments of any tenure;
- “prepare,” in relation to food, includes manufacture and “preparation” shall be construed accordingly;
- “prescribed” means prescribed by the Minister;
- “public analyst” has the meaning assigned to it by section sixty-six of this Act;
- “purveyor,” in relation to milk, includes any person who sells milk, whether wholesale or by retail;
- “rural authority” means the council of a rural district;
- “sampling officer” has the meaning assigned to it by section sixty-eight of this Act;

A.D. 1938.

PART VI.

—cont.

24 & 25

Geo. 5. c. 42.

“sanitary convenience” means a closet, privy or urinal;

“separated,” in relation to milk, includes skimmed;

“shop” has the same meaning as in the Shops Act, 1934;

“slaughter-house” means any premises used in connection with the business of slaughtering animals, the flesh of which is intended for sale for human consumption;

“substance” includes a liquid;

“transit” includes all stages of transit from the dairy, place of manufacture or other source of origin, to the consumer;

“urban authority” means the council of a borough or urban district;

“vessel” includes a receptacle of any kind, whether open or closed.

(2) In this Act, unless the context otherwise requires—

(a) any reference to milk shall be construed as including a reference to cream and to separated milk, but not as including a reference to dried milk or to condensed milk; and

(b) any reference to food of any kind sold, or offered, exposed, intended or in preparation, for sale for human consumption shall be construed as including a reference to that food sold, or offered, exposed, intended or in preparation, for sale for the manufacture of products for human consumption.

Repeals and
construction
of refer-
ences.

101.—(1) The enactments mentioned in the First Part of the Fourth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Part, and the said repeal shall as respects the Acts mentioned in the Second Part of the said Schedule, to the extent specified in the third column of that Part, extend to Scotland and shall as respects the Act mentioned in the Third Part of the said Schedule, to the extent specified in the third column of that Part, extend to Northern Ireland and the Isle of Man.

(2) The provisions of the Public Health Act, 1875, specified in paragraph (2) of Part I of the Third Schedule

to the Public Health Act, 1936, as repealed by that Act except so far as they might be material for the purposes of any unrepealed enactment in the said Act of 1875, or any Act directed to be construed therewith, shall be deemed to be repealed except so far as they may be material for the purposes of any enactment in any such Act which remains unrepealed after the commencement of this Act.

A.D. 1938.

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PART VI.
—cont.

(3) In so far as any provision in an order or regulation made under any enactment repealed by this Act could have been made under a corresponding enactment in this Act, or, in the case of a provision in a Milk and Dairies Order, under an enactment in this Act relating to Milk and Dairies Regulations, it shall not be invalidated by this repeal, but shall have effect as if it had been made under that corresponding, or other, enactment in this Act, and may be amended, varied, revoked or enforced accordingly, and any person who is guilty of a contravention of, or non-compliance with, any such provision shall be guilty of an offence under this Act.

(4) Subject to any express provision in this Act to the contrary, in so far as any appointment, agreement or byelaw made, or any resolution passed, or any notice, direction, consent, approval, or certificate given under any enactment repealed by this Act, or any licence granted or deemed to have been granted, registration effected, or deemed to have been effected, proceeding instituted or other thing done under any such enactment could have been made, passed, given, granted, effected, instituted or done under a corresponding provision of this Act, it shall not be invalidated by this repeal, but shall have effect as if it had been made, passed, given, granted, effected, instituted or done under that corresponding provision and may be amended, varied, revoked or enforced accordingly, and, in the case of any legal proceeding, may be continued and appealed against as if this Act had not been passed.

(5) Any document referring to an Act or enactment repealed by this Act shall be construed as referring to this Act or, as the case may be, to the corresponding enactment, if any, in this Act.

A.D. 1938.

PART VI.

—*cont.*52 & 53 Vict.
c. 63.Application
to Scotland
and
Northern
Ireland.

(6) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

102.—(1) This Act, except the provisions of—

- (i) Sections eight, thirty, thirty-one, and thirty-three;
- (ii) Part IV;
- (iii) Subsection (4) of section eighty-one;
- (iv) Subsections (1) to (4) of section ninety-two (so far as relating to Food Regulations and Bread and Flour Regulations);
- (v) Section ninety-eight, so far as relating to the Bread Act, 1836;
- (vi) Subsection (1) of section one hundred so far as relating to the interpretation of the expressions “container”, “cream”, “preparation” and “substance”, and subsection (2) of the said section;
- (vii) Section one hundred and one, so far as relating to the enactments mentioned in the Second Part of the Fourth Schedule to this Act; and
- (viii) Subsection (1) of section one hundred and three,

shall not apply to Scotland, and the above mentioned provisions shall apply subject to the following modifications:—

- (a) the said provisions (other than Part IV of this Act) shall be construed as one with the Food and Drugs (Adulteration) Act, 1928, and shall be deemed to be included in Part I thereof:

Provided that—

(i) the expression “food” shall have the meaning assigned to it by section one hundred of this Act instead of the meaning assigned to it by the said Act of 1928; and

(ii) any reference in the last mentioned Act to regulations made under the Public Health (Regulations as to Food) Act, 1907,

shall include a reference to regulations made under section eight or section thirty of this Act;

A.D. 1938.

—
PART VI.

—cont.

- (b) for any reference to the Minister of Health there shall be substituted a reference to the Department of Health for Scotland;
- (c) for any reference to the Minister of Agriculture and Fisheries there shall be substituted a reference to the Department of Agriculture for Scotland;
- (d) for paragraph (e) of section forty of this Act the following paragraph shall be substituted—
“ (e) any such butter, margarine or milk-blended butter as is referred to in subsection (1) of section thirty-two of this Act ”;
- (e) the proviso to subsection (4) of section forty-two of this Act shall have effect as if the reference to the regulations therein mentioned included a reference to orders made under subsection (2) of section twelve of the Milk and Dairies (Scotland) Act, 1914;
- (f) in the application of subsection (5) of section forty-two of this Act, for any reference to the day on which a summons is returnable there shall be substituted a reference to the day on which the case proceeds to trial;
- (g) in the application of subsection (2) of section ninety-two of this Act, for any reference to a court of summary jurisdiction there shall be substituted a reference to the sheriff, and for any reference to section seventy-nine of this Act there shall be substituted a reference to subsection (3) of section twenty-seven of the Food and Drugs (Adulteration) Act, 1928; and
- (h) section two of the Public Health (Regulations as to Food) Act, 1907, and section three hundred and nineteen of the Public Health Act, 1936, shall, notwithstanding that the last-mentioned enactment does not apply to Scotland, apply to all Food Regulations and to all Bread and Flour Regulations, in like manner as those enactments apply to the regulations respectively mentioned therein.

4 & 5 Geo. 5.
c. 46.

A.D. 1938.

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PART VI.
—cont.

(2) Part IV of this Act, section one hundred and one so far as relating to the enactments mentioned in the Third Part of the Fourth Schedule and subsection (1) of section one hundred and three shall apply to Northern Ireland, subject to the following modifications :—

(a) for any reference to the Minister of Agriculture and Fisheries there shall be substituted a reference to the Ministry of Agriculture for Northern Ireland;

(b) for paragraph (e) of section forty of this Act the following paragraph shall be substituted—

“(e) any such butter, margarine or milk-blended butter as is referred to in subsection (1) of section thirty-two of this Act ”;

but save as aforesaid, this Act shall not apply to Northern Ireland.

Short title,
date of
commence-
ment and
extent.

103.—(1) This Act may be cited as the Food and Drugs Act, 1938, and shall come into operation on the first day of October nineteen hundred and thirty-nine.

(2) Part V of this Act shall not extend to London.

(3) This Act shall not, save as mentioned in the last preceding section, extend to Scotland or Northern Ireland.

SCHEDULES.

A.D. 1938.
—**FIRST SCHEDULE.**

Sections 25
(4), 37 (5).**PART I.****DISEASES OF COWS TO WHICH SECTION TWENTY-
FIVE APPLIES.**

Acute mastitis.

Actinomycosis of the udder.

Suppuration of the udder.

Any infection of the udder or teats which is likely to convey
disease.

Any comatose condition.

Any septic condition of the uterus.

Anthrax.

Foot and mouth disease.

PART II.**MILK-BORNE DISEASES.**

Enteric fever (including typhoid and paratyphoid fevers).

Dysentery.

Diphtheria.

Scarlet fever.

Acute inflammation of the throat.

Gastro-enteritis.

Undulant fever.

SECOND SCHEDULE.

Section
47 (2).**CHARGES FOR WEIGHING ANIMALS.**

For every head of cattle - - - - - sixpence.

For every five (or a less number) of sheep or swine - threepence.

A.D. 1938.

THIRD SCHEDULE.

Sections 71
(1), 84 (2).

SPECIAL PROVISIONS AS TO THE SAMPLING OF MILK.

(1) Where a sample of milk is procured from a purveyor of milk, he shall, if required to do so by the person by whom or on whose behalf the sample was procured, state the name and address of the seller or consignor from whom he received the milk.

(2) Within sixty hours after the sample was procured from the purveyor, he may serve on the authority by whose officer it was procured, or, if it was not procured by an officer of any authority, on the Food and Drugs authority within whose area it was procured, a notice stating the name and address of the seller or consignor from whom he received the milk and the time and place of delivery to himself of milk from a corresponding milking, and requesting the authority to take immediate steps to procure, as soon as practicable, a sample of milk from a corresponding milking in the course of transit or delivery to himself from the seller or consignor :

Provided that—

- (a) if such a sample has been so procured since the sample in question was procured, or had been so procured within twenty-four hours prior to that sample being procured, it shall not be necessary for the authority to procure another sample in accordance with the notice; and
 - (b) the purveyor shall have no right to require that such a sample shall be procured if the milk from which the sample procured from him was taken was a mixture of milk obtained by him from more than one person.
- (3) If a purveyor has served on the authority such a notice as aforesaid, and the authority have, in a case not falling within proviso (a) to the preceding paragraph, omitted to procure a sample of milk from the seller or consignor in accordance with the foregoing provisions, no proceedings under this Act shall be taken against the purveyor in respect of the sample procured from him.
- (4) Any sample so procured in the course of transit or delivery shall be submitted for analysis to the analyst to whom the sample procured from the purveyor is or was submitted.
- (5) If proceedings are taken against the purveyor, a copy of the certificate of the result of the analysis of every sample so procured in the course of transit or delivery shall be furnished to him, and every such certificate and copy shall, subject to the provisions of section eighty-one of this Act, be admissible as

evidence on any question whether the milk sold by the purveyor was sold in the same state as it was in when he purchased it.

(6) The authority by whose officer, or within whose area, the first-mentioned sample was procured may, instead of, or in addition to, taking proceedings against the purveyor, take proceedings against the seller or consignor.

(7) If a sample of milk of cows in any dairy is procured in course of transit or delivery from that dairy, the dairyman may, within sixty hours after the sample was procured, serve on the authority by whose officer the sample was procured a notice requesting them to take immediate steps to procure as soon as practicable a sample of milk from a corresponding milking of the cows and, thereupon, paragraphs (2) to (5) of this Schedule shall, so far as applicable, apply with any necessary modifications :

Provided that the person procuring the sample shall be empowered to take any such steps at the dairy as may be necessary to satisfy him that the sample is a fair sample of the milk of the cows when properly and fully milked.

A.D. 1938.

3RD SCH.
—cont.

FOURTH SCHEDULE.

Section 101.

PART I.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
32 Henry 8. c. 40.	Conŕning Phisicians	Section two.
1 Mary : Sess. 2. c. 9.	An Acte touching thincorporations of the Phisitions in London.	Section three.
6 Anne, c. 68	An Act for repealing the Act of the First year of King James the First intituled an Act for the well garbling of Spices.	The whole Act.
5 Geo. 1. c. 11	The Adulteration of Coffee Act, 1718.	The whole Act.

A.D. 1938.

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4TH SCH.
—*cont.*

Session and Chapter.	Short Title.	Extent of Repeal.
11 Geo. 1. c. 30.	The Adulteration of Tea and Coffee Act, 1724.	Section nine.
7 Geo. 2. c. 19	The Adulteration of Hops Act, 1733.	The whole Act.
26 Geo. 3. c. 71.	The Knackers Act, 1786.	The whole Act.
55 Geo. 3. c. 194.	The Apothecaries Act, 1815.	Sections three and four, and in section eight the words from "save and except" (where those words first occur) to "medicines, and also".
3 Geo. 4. c. cvi.	An Act to repeal the Acts in force relating to bread to be sold in the City of London and the Liberties thereof, and for other purposes in the said Act mentioned.	The whole Act.
6 & 7 Will. 4. c. 37.	The Bread Act, 1836	The whole Act.
7 & 8 Vict. c. 87.	The Knackers Act, 1844.	The whole Act.
38 & 39 Vict. c. 55.	The Public Health Act, 1875.	Sections one hundred and sixteen to one hundred and nineteen, and one hundred and sixty-six to one hundred and seventy; the Third Schedule and, in the Fourth Schedule, Forms L, M and O.
41 & 42 Vict. c. 49.	The Weights and Measures Act, 1878.	Part II of the Sixth Schedule, so far as respects any local authority outside London who are a market authority for the purposes of this Act.
47 & 48 Vict. c. 12.	The Public Health (Confirmation of Byelaws) Act, 1884.	Section three, so far as it relates to byelaws made under section one hundred and twenty-eight of the Towns Improvement Clauses Act, 1847, or section forty-two of the Markets and Fairs Clauses Act, 1847, by virtue of their incorporation with the Public Health Act, 1848, the Local Government Act, 1858, or the Public Health Act, 1875.

Session and Chapter.	Short Title.	Extent of Repeal.
50 & 51 Vict. c. 27.	The Markets and Fairs (Weighing of Cattle) Act, 1887.	Sections four to nine, so far as respects any local authority outside London who are a market authority for the purposes of this Act.
52 & 53 Vict. c. 11.	The Sale of Horse-flesh, &c., Regulation Act, 1889.	The whole Act.
53 & 54 Vict. c. 34.	The Infectious Disease (Prevention) Act, 1890.	The whole Act.
53 & 54 Vict. c. 59.	The Public Health Acts Amendment Act, 1890.	Paragraph (2) of section three and sections twenty-eight to thirty-one, and fifty.
54 & 55 Vict. c. 70.	The Markets and Fairs (Weighing of Cattle) Act, 1891.	Sections one and two, so far as respects any local authority outside London who are a market authority for the purposes of this Act.
56 & 57 Vict. c. 73.	The Local Government Act, 1894.	In section sixteen, subsection (1) so far as regards functions of a rural district council which are functions under this Act; in section twenty-five, subsections (1) and (7) so far as regards functions of a council which are functions under this Act; subsection (2) of section twenty-seven and section sixty-three so far as regards functions of a council which are functions under this Act.
7 Edw. 7. c. 32.	The Public Health (Regulations as to Food) Act, 1907.	The whole Act.
7 Edw. 7. c. 53.	The Public Health Acts Amendment Act, 1907.	In section one, the reference to Part IV—Infectious diseases; in section thirteen, the definitions of “dairy”, “dairyman” and “infectious disease”; and sections fifty-three and fifty-four.

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Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 6.	The Public Health Act, 1908.	The whole Act.
5 & 6 Geo. 5. c. 66.	The Milk and Dairies (Consolidation) Act, 1915.	The whole Act.
12&13Geo.5. c. 28.	The Bread Acts Amendment Act, 1922.	The whole Act.
12&13Geo.5. c. 54.	The Milk and Dairies (Amendment) Act, 1922.	The whole Act.
15&16Geo.5. c. 71.	The Public Health Act, 1925.	Sections seventy-one and seventy-two.
16&17Geo.5. c. 21.	The Markets and Fairs (Weighing of Cattle) Act, 1926.	The following provisions so far as respects any local authority outside London who are a market authority for the purposes of this Act, that is to say—in section two the words from the beginning to “facilities for weighing cattle and” and the word “respectively”; section three, and the Schedule.
18&19Geo.5. c. 31.	The Food and Drugs (Adulteration) Act, 1928.	The whole Act.
19 & 20 Geo. 5. c. 17.	The Local Government Act, 1929.	In section fifty-seven, subsections (2) and (3) so far as regards functions relating to public health which are functions under this Act.
19&20Geo.5. c. 32.	The Artificial Cream Act, 1929.	The whole Act.
22&23Geo.5. c. 28.	The Public Health (Cleansing of Shellfish) Act, 1932.	The whole Act.
23 & 24 Geo. 5. c. 51.	The Local Government Act, 1933.	In section one hundred and fifty-nine, subsection (2) so far as it relates to purposes which are purposes of this Act.
24&25Geo.5. c. 51.	The Milk Act, 1934.	Section ten.

Session and Chapter.	Short Title.	Extent of Repeal.
26 Geo. 5. & 1 Edw. 8. c. 50.	The Public Health (London) Act, 1936.	Subsections (1) to (7) and (9) to (11) of section one hundred and eighty; sections one hundred and eighty-one to one hundred and eighty-three, one hundred and eighty-five to one hundred and ninety-one, two hundred and six and two hundred and seven; in section two hundred and seventy-four, the proviso to subsection (1); in section two hundred and seventy-six, proviso (b) to subsection (1) and subsection (2); and in section three hundred and one the words in subsection (2) from "relating to the registration" to "preserved food, or."
1 Edw. 8. & 1 Geo. 6. c. 67.	The Factories Act, 1937.	Subsection (1) of section one hundred and fifty-seven and Part I of the Third Schedule.

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4TH SCH.
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PART II.

REPEALS EXTENDING TO SCOTLAND.

Section
102 (1).

6 & 7 Will. 4. c. 37.	The Bread Act, 1836	The whole Act.
7 Edw. 7. c. 32.	The Public Health (Regulations as to Food) Act, 1907.	The whole Act, in so far as it empowers regulations to be made regarding food (excluding milk).
12 & 13 Geo. 5. c. 28.	The Bread Acts (Amendment) Act, 1922.	The whole Act.
18 & 19 Geo. 5. c. 31.	The Food and Drugs (Adulteration) Act, 1928.	Section six (except subsections (2) and (7)); sections twelve, twenty and twenty-three; the proviso to subsection (3) of section twenty-seven and subsections (5) and (6) of section twenty-eight.

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PART III.

4TH SCH.
—cont.REPEALS EXTENDING TO NORTHERN IRELAND
AND THE ISLE OF MAN.Section
102 (2).

Session and Chapter.	Short Title.	Extent of Repeal.
18 & 19 Geo. 5. c. 31.	The Food and Drugs (Adulteration) Act, 1928.	Sections twelve and twenty; the proviso to subsection (3) of section twenty - seven; subsections (5) and (6) of section twenty-eight and sec- tion thirty-six.

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